INTELLECTUAL DIVERSITY MANDATES AND THE FREEDOM TO TEACH

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This Article provides the first examination of the Indiana Senate Bill 202, which was adopted into law in the spring of 2024. The new law imposes an "intellectual diversity" mandate on public university classroom teaching in the state. The law is novel in its approach but is part of a larger movement to intercede in what is taught in university classrooms. The intellectual diversity mandate raises difficult and unexamined conceptual, normative, and practical problems that will now demand attention from university officials in Indiana, and that might soon confront university administrators in other states across the country if the Indiana model proves politically attractive.

Although an intellectual diversity mandate might not be as dangerous to the free exploration of ideas in academia as the more common "divisive concepts" bans that prohibit the promotion of politically disfavored ideas in public university classrooms, it nonetheless marks an extraordinary political intrusion into the freedom of university professors to teach in accord with their own professional judgment. As such, it poses a significant threat to traditional principles of academic freedom. That threat is exacerbated by the uncertainty created by the novelty and undertheorized quality of an intellectual diversity mandate.

This Article lays bare the normative problems for academic freedom with such a mandate. It also examines the conceptual and practical challenges with such a mandate, demonstrating why the mandate is likely to lower the quality of university education while failing to accomplish its intended policy aims. It also considers how such a mandate might be implemented and what approaches to implementation might mitigate the risks associated with such a requirement.

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I. INTRODUCTION

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Indiana's Senate Bill 202, and "Act to amend the Indiana Code concerning higher education," was signed into law on March 13, 2024. Passed by large but partisan majorities in the two chambers of the state legislature, the bill, as summarized by the legislative digest, "establishes various requirements and restrictions for institutions regarding free inquiry, free expression, and intellectual diversity."[1] Most distinctively, it mandates as a condition of faculty tenure in state universities that professors "foster a culture of free inquiry, free expression, and intellectual diversity within the institution" and expose students "to scholarly works from a variety of political or ideological frameworks."[2]

The Indiana law is the first of its kind and poses unexplored risks to academic freedom and the quality of higher education in the state. Recent legislative interventions into university classroom teaching have attempted to suppress the teaching of "divisive concepts" that legislators do not like, particularly ideas that are loosely associated with "critical race theory."[3] Although motivated by similar political concerns as the divisive concepts legislation, the Indiana intellectual diversity law attempts to address the problem of politically radical ideas in university classrooms not by suppressing the promotion of those ideas but by mandating the inclusion of additional ideas in university classes. It thus seeks to avoid the charge that it is an educational "gag order" by adding to rather than suppressing the ideas discussed on campus.[4]

The distinctive approach of the intellectual diversity mandate avoids some of the pitfalls of the divisive concepts bans but raises new conceptual and normative puzzles and a host of implementation challenges. This Article will lay bare the normative problems for academic freedom with such a mandate. It also examines the conceptual and practical challenges with such a mandate, demonstrating why the mandate is likely to lower the quality of university education while failing to accomplish its intended policy aims. It also considers how such a mandate might be implemented and what approaches to implementation might mitigate the risks associated with such a requirement.

The Article proceeds through several parts. Part II describes Indiana's SB 202, the intellectual diversity mandate, and its political context. Part III elaborates traditional principles of academic freedom in the United States with a particular focus on the freedom to teach. Part IV examines a less-prominent feature of SB 202, its requirement that faculty be assessed on their ability and willingness to foster a spirit of free inquiry on campus. Part V examines the intellectual diversity mandate itself, its conceptual ambiguity, and its problems for free inquiry and university education. Part VI considers the challenges of implementing such a mandate and identifies possible approaches to implementation that might mitigate the risks associated with the mandate. Part VII concludes with an overview of the argument and a suggestion about better approaches to cultivating intellectual diversity on university campuses.

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[1] SB 202 (https://iga.in.gov/legislative/2024/bills/senate/202/details)

[2] Indiana Code, Title 21, Art. 39.5, Chap. 2, Sec. 1(b) (2024).

[3] *See* KEITH E. WHITTINGTON, YOU CAN'T TEACH THAT! (2024).

[4] On charges that divisive concepts laws are "gag orders," see PEN AMERICA, EDUCATIONAL GAG ORDERS: LEGISLATIVE ON THE FREEDOM TO READ, LEARN, AND TEACH (2022) (https://pen.org/wp-content/uploads/2022/02/PEN_EducationalGagOrders_01-18-22-compressed.pdf); AAUP, Educational Gag Orders: Legislative Interference in Teaching about Race, AAUP.org (https://www.aaup.org/issues/political-interference-higher-ed/educational-gag-orders-legislative-interference-teaching)

II. THE INTELLECTUAL DIVERSITY MANDATE

On January 9, 2024, Indiana State Senator Spencer Deery joined two other Republican state senators in introducing Senate Bill 202 into the legislature. A former deputy chief of staff for Purdue University President (and former governor) Mitch Daniels, Deery was first elected to the state senate in 2022.[5] In his first legislative session, he focused on such proposals as barring universities from withholding student transcripts[6] and requiring secondary schools to provide instruction on financial literacy.[7] In his second session, he ventured into more controversial territory.

In announcing his legislative priorities for 2024, Deery complained that students in Indiana were "hindered" from pursuing a college degree "by the growing perception that universities are not places that welcome diverse viewpoints." He promised legislation that would "compel colleges and universities to reform in ways that would make them more welcoming to scholarly ideas from a variety of perspectives" and "encourage more Hoosiers to pursue a college degree and improve the quality of education they receive once there."[8] When the bill swept through the state senate with a large majority vote less than a month later, Deery declared the bill would force institutions of higher education to "correct the course." They suffered, he thought, from "hyper-politicization and monolithic thinking." Moreover, surveys suggested that he was not alone in thinking so. He pointed to the collapse of public confidence in universities among Republicans, with "the leading cause of the decline in approval" the perception that "professors bringing their political and social views into the classroom." Curbing "excessive politicization and viewpoint discrimination" was essential to restoring public faith in higher education and encouraging more young people to attend college.[9] After the governor signed the bill into law, Deery crowed that the measure made "it significantly less likely that any university will shortchange our students" by failing "to foster intellectually diverse communities that challenge both teachers and learners." Moreover, the legislation did so "without mandating or prohibiting any content and with no interruption to the important efforts to recruit and retain minority students in higher education." It "pushes our universities to improve with minimal disruption to how they already operate."[10]

Not everyone saw it that way. A Democratic state representative complained that the "bill acts as the proverbial thought police" and would judge professors "by a particular student or board member who believes they fail an ideological litmus test."[11] Local activists thought the bill was indistinguishable from anti-CRT bills and designed to remove faculty "for speaking about discrimination and racism in higher education classes in the state of

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[5] https://www.spencerdeery.com/meet-spencer

[6] SB 404 (https://iga.in.gov/legislative/2023/bills/senate/404/details)

[7] SB 35 (https://iga.in.gov/legislative/2023/bills/senate/35/details)

[8] Deery Announces 2024 Legislative Priorities (https://www.indianasenaterepublicans.com/deery-announces-2024-legislative-priorities)

[9] Deery: Higher Education Reform Bill Passes Senate (https://www.indianasenaterepublicans.com/deery-higher-education-reform-bill-passes-senate)

[10] Statement from State Sen. Spencer Deery (https://www.indianasenaterepublicans.com/statement-from-state-sen-spencer-deery-202-signed)

[11] Noe Padilla, *Local Legislators Speak on Tenure Reform Bill, Senate Bill 202, Passing the House*, LAFAYETTE JOURNAL & COURIER (March 1, 2024).

Indiana."[12] Faculty expressed fear that they would be punished if they "don't cater enough to their [students'] political beliefs."[13] Some worried that the mandate would require that professors assign misinformation to their classes such as that "HIV doesn't cause AIDS or that vaccination promotes autism."[14] Others insisted that SB 202 "is nakedly about censoring speech, it is nakedly about punishing" and will create "a system of surveillance and political scrutiny that is going to stifle the free flow of ideas."[15]

The fight over SB 202 comes after nearly four years of policy debate over the teaching of "divisive concepts" in public universities. President Donald Trump got the ball rolling with a campaign-season executive order prohibiting barring a list of divisive concepts from federal workplace training.[16] The order responded to growing concern on the right that the "DEI industrial complex" was imposing a litany of controversial claims regarding race and gender on America employees, especially in the aftermath of the killing of George Floyd.[17] Conservative activists and politicians soon discovered that such ideas not only permitted corporate human resources but also education, highlighted by the push for schools to integrate *The 1619 Project* into their curriculum.[18] Legislators across the country put forward measures aimed at excluding "critical race theory" and related concepts from primary and secondary education and eventually from higher education.[19] Florida's Stop WOKE Act is the most prominent of these bills, and it prohibits the espousal or promotion in public university classrooms of a list of politically disfavored ideas.[20] That provision was ultimately enjoined by a federal district court as violating the First Amendment for engaging in viewpoint discrimination against classroom speech.[21] Against that backdrop, SB 202 attempts to scratch the same political itch but without drawing accusations that it is suppressing or censoring speech.

Although SB 202 is a novel response, the lack of intellectual diversity in American higher education has long been an article of faith on the right. In 1987, for example, Senator Gordon Humphrey dismissed academic criticisms of the nomination of Robert Bork to a

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[12] University Alliance for Racial Justice, State on the Civil Rights Implications of Senate Bill 202 (February 22, 2024) (https://indyliberationcenter.org/stop-sb-202-from-passing/).

[13] Kristin Bien, *Controversial Indiana Senate Bil Passes House Amidst Heavy Opposition from Academics*, WSBT (February 28, 2024) (https://wsbt.com/news/operation-education/controversial-indiana-senate-bill-passes-house-amidst-heavy-opposition-from-academics).

[14] James Kling, *Purdue Profs Testify in Bill Controversy*, PURDUE EXPONENT (February 14, 2024) (https://www.purdueexponent.org/campus/article_4a8d1176-cb94-11ee-b6a5-fb3c1a444648.html).

[15] Ryan Quinn, *Indiana Bill Threatens Faculty Members Who Don't Provide "Intellectual Diversity*," INSIDE HIGHER ED (February 21, 2024) (https://www.insidehighered.com/news/faculty-issues/academic-freedom/2024/02/21/bill-threatens-profs-who-dont-give-intellectual).

[16] Exec. Order 13950, 3 CFR 433 (2020).

[17] Thomas Hackett, *The Sudden Dominance of the Diversity-Industrial Complex*, REALCLEAR INVESTIGATIONS (February 14, 2023) (https://www.realclearinvestigations.com/articles/2023/02/14/the_sudden_dominance_of_the_diversity_industrial_complex_880202.html).

[18] Sarah Schwartz, *Lawmakers Push to Ban "1619 Project" from Schools*, EDUCATION WEEK (February 3, 2021) (https://www.edweek.org/teaching-learning/lawmakers-push-to-ban-1619-project-from-schools/2021/02).

[19] See WHITTINGTON, YOU CAN'T TEACH THAT!, at 11-16.

[20] Fla. Stat. § 1000.05(4) (2023).

[21] Pernell v. Florida Board of Governors of the State University System, 641 F. Supp. 3d 1218 (Dist. N.FL 2022).

seat on the Supreme Court as simply reflective of the lack of "intellectual diversity" in the academic community; "academia today is almost monolithically political and that applies to law schools perhaps even more than academia in general." The opposition of law professors to a conservative judicial nominee should not merely be taken as a given, it should be "read as a commendation."[22] In 2003, Republicans dedicated an entire Senate hearing to the question of "is intellectual diversity an endangered species on America's college campuses?" The question was rhetorical, as the hearing opened with the chair opining, "Students on many of America's college campuses are being exposed to only a narrow range of viewpoints through the politicized course offerings and the ideologically homogeneous faculty that fosters an atmosphere where dissenting views are either quashed or ridiculed and significant restrictions are placed on free speech."[23]

Such persistent concerns gave rise to a controversial policy proposal. The conservative activist David Horowitz introduced the Academic Bill of Rights in 2003, which framed academic freedom and intellectual diversity as an essential pairing. It called on universities to hire and promote faculty "with a view toward fostering a plurality of methodologies and perspectives" and to provide students in the classroom with "the spectrum of significant scholarly viewpoints on the subjects examined in their courses."[24] As Horowitz later explained, "the remedy ["to the politicized culture of the university"] is so simple. Required readings on more than one side of a political controversy would be appropriate educational policy and would strengthen, not weaken, the democracy that supports our educational system."[25] The American Association of University Professors (AAUP) formally denounced the Academic Bill of Rights for inviting "diversity to be measured by political standards that diverge from academic criteria of the scholarly profession," worrying that it would require philosophy departments to appoint "a professor of Nazi political philosophy" and chemistry departments to appoint "a professor who teaches the phlogiston theory of heat."[26] Literary scholar and dean Stanley Fish thought "intellectual diversity" was a "Trojan horse of a dark design," replacing an academic goal with a political one. Intellectual diversity might "attend some moments in the pursuit of truth when there is as yet no clear path" but it is "not a condition one must actively seek or protect."[27]

After Horowitz introduced his Academic Bill of Rights over two decades ago, an intellectual diversity mandate was frequently discussed but never implemented. After a few years of heated debate, the idea faded into the background though the concern remained very much a live issue. In 2001, the National Association of Scholars, an advocacy group that "seeks to reform higher education" to foster intellectual freedom, issued a report with proposed amendments to the federal Higher Education Act. In order to "de-politicize the campus," it urged Congress to "make intellectual diversity protection a condition of Title IV

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[22] 133 CONG. REC. 28912 (October 22, 1987).

[23] IS INTELLECTUAL DIVERSITY AN ENDANGERED SPECIES ON AMERICA'S COLLEGE CAMPUSES? HEARING BEFORE THE COMMITTEE ON HEALTH, EDUCATION, LABOR, AND PENSIONS. U.S. SEN., 108th Cong., 1st Sess., 4 (October 29, 2003).

[24] Students for Academic Freedom, Academic Bill of Rights (https://studentsforacademicfreedom.org/basic-texts/academic-bill-of-rights/).

[25] David Horowitz, *In Defense of Intellectual Diversity*, CHRONICLE OF HIGHER EDUCATION (February 13, 2004).

[26] AAUP, Academic Bill of Rights (https://www.aaup.org/report/academic-bill-rights)

[27] Stanley Fish, *Intellectual Diversity*, CHRONICLE OF HIGHER EDUCATION (February 13, 2004).

eligibility."[28] But the details of its proposed policies focused more on providing protections for faculty excluded or punished for their political views rather than mandating the inclusion of additional perspectives in classes. Others, such as natural law scholar Robert George, urged institutional self-reform and the creation of additional vehicles for introducing students to diverse schools of thought on campus.[29] The intellectual diversity mandate in SB 202 harkens back to the Academic Bill of Rights, but is more pointed in its requirement and more draconian in its enforcement than was typically true in earlier iterations of this debate.

SB 202 has numerous components, several of which are relatively familiar at this point in legislative debates over higher education reform. Those are not of immediate concern for this Article but can be observed briefly. The existing requirement that university boards of trustees create "a diversity committee" is amended to add a requirement that those committees consider "cultural and intellectual diversity issues."[30] Diversity programming on campus will be expanded to include "cultural and intellectual diversity" programming.[31] Some aspects of faculty free expression are statutorily protected.[32] Universities are prohibited from requiring applicants for admission or for teaching positions "to pledge allegiance to or to make a statement of personal political support" any political or ideological movement or to policies or actions that would differentiate among individuals on the basis of various personal characteristics.[33] Universities are directed to adopt a policy of institutional neutrality "on political, moral, or ideological issues" that do no "affect the core mission of the institution and its values of free inquiry, free expression, and intellectual diversity."[34] Universities are directed to conduct student intellectual climate surveys.[35]

The distinctive components of SB 202 that are of importance to this Article are contained in the new Article 39.5 of the Indiana Code on "the protection of free inquiry, free expression, and intellectual diversity."[36] Section 1 of Chapter 2 directs the board of trustees of each public university in the state with a system of faculty tenure to develop a policy that would exclude awarding tenure to any member of the faculty who is

> (1) Unlikely to foster a culture of free inquiry, free expression, and intellectual diversity within the institution;
> (2) Unlikely to expose students to scholarly works from a variety of political or ideological frameworks that may exist within and are applicable to the faculty member's academic discipline; or

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[28] NATIONAL ASSOCIATION OF SCHOLARS, FREEDOM TO LEARN 31 (January 2001).

[29] PROTECTING THE FREE EXCHANGE OF IDEAS ON COLLEGE CAMPUSES: HEARING BEFORE THE SUBCOMMITTEE ON OVERSIGHT OF THE COMMITTEE ON WAYS AND MEANS. U.S. HOUSE OF REP., 115th Cong., 2nd Sess. 87 (March 2, 2016).

[30] S.B. 202, Sec. 2.

[31] S.B. 202, Sec. 9.

[32] Indiana Code, Title 21, Art. 39.5, Chap. 2, Sec. 1(c) (2024).

[33] Indiana Code, Title 21, Art. 39.5, Chap. 3, Sec. 1(b) (2024). On the use of such statements in faculty hiring, see also Keith E. Whittington, *Diversity Statements, Academic Freedom, and the First Amendment*, 103 NEB. L. REV. (2025).

[34] Indiana Code, Title 21, Art. 39.5, Chap. 4, Sec. 2 (2024). On institutional neutrality, see also Keith E. Whittington, *The Value of Institutional Neutrality for Free Inquiry*, 23 FIRST AMEND. L. REV. (2025).

[35] Indiana Code, Title 21, Art. 39.5, Chap. 5 (2024).

[36] Indiana Code, Title 21, Art. 39.5 (2024).

(3) Likely, while performing teaching duties within the scope of the faculty member's employment, to subject students to political or ideological views and opinions that are unrelated to the faculty member's academic discipline or assigned course of instruction.[37]

Moreover, the law establishes a system of post-tenure review that would require the board of trustees to periodically "review and determine whether the faculty member" has lived up to those expectations, as well as has "adequately performed academic duties and obligations."[38] Failure to satisfactorily pass a post-tenure review could lead to a variety of disciplinary actions, up to and including termination.[39] The intellectual diversity mandate would also apply to anyone contracted to teach at the university, which presumably would include those off the tenure-track and hired on a term basis.[40]

In addition to the scheduled review procedures that will require application of the new intellectual diversity criteria, SB 202 also requires institutions to "establish a procedure that allows both students and employees to submit complaints that a faculty member" is failing to meet those requirements.[41] Such complaints will be referred to "appropriate human resource professionals and supervisors for consideration" and to the board of trustees.[42]

SB 202 has sometimes been described as a tenure reform bill,[43] and others have gone further and declared that the bill "is abolishing tenure."[44] In some ways the bill clearly does reform the existing tenure system and creates a new exception to tenure protections. It creates by statute new conditions for faculty tenure and establishes a new system of post-tenure review. As a consequence, it modifies existing policies for awarding tenure and existing procedures and conditions for retaining tenure.

It seems clear, however, that the tenure system as such is not the target of the legislation but rather is the tool for implementing the legislation. Unlike proposals that have been recently debated in other state legislatures, SB 202 did not seek to eliminate faculty tenure at state universities, nor did it impose new limitations on tenure so as to facilitate administrative efficiency in reorganizing and reducing teaching personnel.[45] Like recent initiatives to add diversity, equity, and inclusion (DEI) components to traditional tenure standards in order to incentivize and reward different faculty behavior (and punish other faculty behavior), SB 202 leverages the tenure system to alter faculty behavior by

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[37] Indiana Code, Title 21, Art. 39.5, Chap. 2, Sec. 1(b) (2024).

[38] Indiana Code, Title 21, Art. 39.5, Chap. 2, Sec. 2(a) (2024).

[39] Indiana Code, Title 21, Art. 39.5, Chap. 2, Sec. 2(d) (2024).

[40] Indiana Code, Title 21, Art. 39.5, Chap. 2, Sec. 3(a) (2024).

[41] Indiana Code, Title 21, Art. 39.5, Chap. 2, Sec. 4(a)(1) (2024).

[42] Indiana Code, Title 21, Art. 39.5, Chap. 2, Sec. 4(a) (2024).

[43] *See, e.g.*, Noe Padilla, *Indiana Tenure Reform Bill, Senate Bill 202, Passes State House*, LAFAYETTE JOURNAL & COURIER (February 27, 2024); Jeff Parrott, *Indiana University Faculty Worry about Conservatives' Tenure Bill*, WVPE (February 22, 2024) (https://www.wvpe.org/wvpe-news/2024-02-22/indiana-university-faculty-worry-about-conservatives-tenure-bill).

[44] Leslie Bonilla Muniz, *Conservative-Friendly Higher Education Legislation Clears Senate*, INDIANA CAPITAL CHRONICLE (February 7, 2024) (https://indianacapitalchronicle.com/2024/02/07/conservative-friendly-higher-education-legislation-clears-senate/).

[45] Jeremy Bauer-Wolf, *Anti-Tenure Bills Stall in State Legislatures*, HIGHER ED DIVE (June 2, 2023) (https://www.highereddive.com/news/anti-tenure-bills-state-legislatures/651859/).

adding to existing tenure expectations.[46] Of course, in doing so, it also creates a new loophole for disciplining faculty who resist the new vision of their professional responsibilities.

Indiana's SB 202 responds to complaints that American higher education is unwelcoming to political conservatives and their ideas by mandating that public university professors take care that their courses expose students to "a variety of political or ideological frameworks." Such a legislative intrusion in the design of university course syllabi and the teaching of classes is highly unusual. The consequences of failing to meet the new expectations are severe, with dismissal from the faculty being the expected outcome. Faculty failures to meet the mandate are to be identified through a combination of student "fire alarms" and board of trustees "police patrols."[47] What constitutes adequate intellectual diversity under this mandate is unclear.

III. ACADEMIC FREEDOM AND THE FREEDOM TO TEACH

American principles of academic freedom date from the early twentieth century.[48] Before that, university officials at both public and private universities were expected to make sure that the activities of the faculty were consistent with the desires and opinions of the board of trustees. Professors who tested the patience of university leaders with their professional or personal activities were routinely fired. Parents and students expected that what was taught in the university classroom did not merely reflect the professional judgment of the individual instructor but reflected the commitments of the institution as a whole. Turn-of-the-century trustees valued professors for their orthodoxy, not their iconoclasm.

During the mid-twentieth century, most American universities adopted some version of the principles of academic freedom articled in a joint Statement of Principles issued by the American Association of University Professors and Association of American Colleges in 1940.[49] Those policies became a matter of professional norms and contractual arrangements, which could be voluntarily shed by individual institutions or, in the case of public universities, overridden by state government officials. The 1940 Statement included an endorsement of a system of academic tenure for faculty such that scholars and instructors "should have permanent or continuous tenure, and their service should be terminated only for adequate cause, except in the case of retirement for age, or under extraordinary circumstances because of financial exigencies."[50] Such a system of

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[46] Isha Trivedi, *More Colleges are Adding Diversity to Tenure Standards. But the Debate's Not Settled*, CHRONICLE OF HIGHER EDUCATION (August 12, 2022); Colleen Flaherty, *The DEI Pathway to Promotion*, INSIDE HIGHER ED (May 13, 2021).

[47] On fire alarms and police patrols as alternative models for oversight, see Mathew D. McCubbins, *Congressional Oversight Overlooked: Police Patrols versus Fire Alarms*, 28 AMER. J. POL. SCI. 165 (1984).

[48] On the early struggle for academic freedom in the United States, *see* KEITH E. WHITTINGTON, YOU CAN'T TEACH THAT!; DAVID RABBAN, THE MEANING OF ACADEMIC FREEDOM (2024); HANS-JOERG TIEDE, UNIVERSITY REFORM (2015); MATTHEW W. FINKIN AND ROBERT C. POST, FOR THE COMMON GOOD (2009); WALTER P. METZGER, ACADEMIC FREEDOM IN THE AGE OF THE UNIVERSITY (1955).

[49] *1940 Statement of Principles on Academic Freedom and Tenure, in* AAUP, POLICY DOCUMENTS AND REPORTS 13 (11th ed. 2015).

[50] 1940 Statement of Principles, at 15.

employment security provided greater practical guarantees for the protection of academic freedom. Academic freedom consists of three core commitments. Professors were to enjoy "full freedom in research and in the publication of their results," "freedom in the classroom in discussing their subjects," and freedom to "speak or write as citizens."[51] In each case, the goal was to insulate professors from discipline by their university employer for writing or saying something controversial in their scholarship, teaching, or private life.

It is the second principle – the freedom of teaching – that is potentially affected by the intellectual diversity mandate and that is of interest in this Article. The 1940 Statement is quite spare in characterizing this component of academic freedom. It acknowledges that some institutions "because of religious or other aims" might impose explicit limits on the freedom of the instructor.[52] It likewise acknowledged a potential captive audience problem. Professors were cautioned that "they should be careful not to introduce into their teaching controversial matter which has no relation to their subject."[53] This responsibility was but the converse of their "freedom in the classroom in discussing their subject."[54]

I have characterized this as a germaneness constraint. Professors are free to teach the subject matter of their assigned course, but they are subject to discipline if they neglect their teaching responsibilities by hijacking the course to discuss unrelated issues or abuse their position by subjecting students to controversies and topics that are beyond the scope of the class in which they enrolled.[55] As Matthew Finkin and Robert Post have suggested, "a pedagogical intervention bears a 'relation' to a subject under consideration if it is educationally relevant."[56] Professors are not expected to avoid controversial topics and materials, but merely controversial topics and materials that do not serve an educational function relating to the specific subject matter of the course being taught. Controversial material might be within the professor's expertise or of general interest to the community, but they have no place in a specific course unless they advance the educational purpose of that specific course. Similarly, classroom behavior that in good faith furthers "a pedagogical purpose" helps distinguish between conduct that is appropriate and conduct that might be harassing or bullying.[57]

In practice, the freedom of teaching has always been understood to include a professional competence constraint as well, though it is not mentioned in the text of the 1940 Statement. Professors are expected not only to teach the subject matter of the assigned course but to do so in a professionally competent manner.[58] As managers of a workplace, university officials have an interest in making sure not only that professors teach the assigned curriculum but also that they do so in accord with professional standards. A professor who presents as true or as mainstream knowledge ideas that are in fact generally understood to be widely rejected crackpot theories is not performing the educational function that they were employed to perform. Students in a science class can

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[51] 1940 Statement of Principles, at 14.

[52] Ibid.

[53] Ibid.

[54] Ibid.

[55] WHITTINGTON, YOU CAN'T TEACH THAT!, at 92-95.

[56] Finkin and Post, at 92.

[57] Kracunas v. Iona College, 119 F.3d 80, 88 (2nd Cir. 1997). *See also*, WHITTINGTON, YOU CAN'T TEACH THAT!, at 93-94.

[58] WHITTINGTON, YOU CAN'T TEACH THAT!, at 96-99.

expect to be taught science, not mysticism. Students in an accounting class can expect to be taught methods that are consistent with the generally accepted accounting principles recognized by the Financial Accounting Standards Board and the governmental Accounting Standards Board and not the idiosyncratic practices that the professor might personally favor.

The AAUP's founding document, the 1915 Declaration of Principles, provides a clearer basis for understanding the professional competence requirement. At the heart of the Declaration is the contention that universities are a public trust in which the faculty seek to impartially advance and disseminate knowledge. As such, they should not "be used as an instrument of propaganda" but should instead be "non-partisan institution[s] of learning."[59] The overriding professional responsibility of the academic is, "after prolonged and specialized technical training, with the sources of knowledge," to "impart the results of their own and of their fellow-specialists' investigations and reflections, both to students and to the general public, without fear or favor."[60] "The liberty of the scholar within the university to set forth his conclusions, be they what they may, is conditioned by their being conclusions gained by a scholar's method and held in a scholar's spirit; that is to say, they must be the fruits of competent and patient and sincere inquiry, and they should be set forth with dignity, courtesy, and temperateness of language."[61] The instructor in the classroom "if he is fit for his position" must be "a person of a fair and judicial mind" and should be willing and able to share with students not only his own opinion but also "the divergent opinions of other investigators."[62] The professor's business "is not to provide his students with ready-made conclusions, but to train them to think for themselves, and to provide them access to those materials which they need if they are to think intelligently."[63] It is not to "take advantage of the student's immaturity by indoctrinating him with the teacher's own opinions" but "to habituate them to looking not only patiently but methodically on both sides, before adopting any conclusions upon controverted issues."[64] The faculty must be willing to "purge its ranks of the incompetent and the unworthy, or to prevent the freedom which it claims in the name of science from being used as a shelter for inefficiency, for superficiality, or for uncritical and intemperate partisanship."[65]

Professional competence necessitates advancing scientific inquiry in the classroom and not receding from it. Professors must not only be well-prepared but also imbued with a "scholar's spirit." They must be willing to have their own ideas tested as well as testing others. The freedom to teach is not an excuse for superficiality or partisanship but is an opportunity for critical inquiry. Students should be prepared to exercise their own reasoned judgment in evaluating "controverted ideas," but by implication they should also be led to proper conclusions by competent guides so as to understand uncontroverted ideas. Professors have both the liberty to share their own controversial ideas with their

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[59] *1915 Declaration of Principles on Academic Freedom and Academic Tenure, in* AAUP, POLICY DOCUMENTS AND REPORTS 5 (11th ed. 2015).

[60] Ibid., at 6.

[61] Ibid., at 9.

[62] Ibid., at 9.

[63] Ibid., at 9.

[64] Ibid., at 10.

[65] Ibid., at 9-10.

students and the responsibility to share the controversial ideas of "other investigators," and they must possess the judgment to know what should be shared and the freedom to do so.

The freedom to teach is not the freedom of professors to say whatever they might want in the classroom. They have the freedom to exercise professional judgment within professionally appropriate bounds. As a consequence, their speech can be both suppressed and compelled without necessarily violating their academic freedom. Professors can be prevented from saying irrelevant and gratuitous things in class, and they can be compelled to teach the curriculum. Professors can be prevented from saying false things in class, and they can be compelled to say true things. They can be prohibited from indoctrinating students, and they can be required to educate them. Professional norms, contractual commitments, and any First Amendment recognition of academic freedom values must take into account the unusual character of the freedom to teach, with both its license and its limitations.[66]

IV. FOSTERING A CULTURE OF FREE INQUIRY

The first prong on Indiana's new tenure requirement is less remarked upon but it is pregnant with puzzles of its own. It specifies that faculty members who are "unlikely to foster a culture of free inquiry, free expression, and intellectual diversity within the institution" should not be promoted or awarded tenure.[67] This does not directly implicate classroom conduct, though teaching might well be informative of how well a faculty member satisfies this condition of tenure. Like the intellectual diversity mandate, this requirement that faculty members foster a culture of free inquiry has no corollary in existing professional norms or commonly used criteria for promotion. This section explores what this requirement might mean and what, if any, problems it creates for traditional academic freedom principles.

The language of this prong would seem to borrow more from recent DEI initiatives than from old Academic Bill of Rights proposals. A spate of recent strategic plans in higher education and beyond call for actions that would "foster a culture of inclusion and diversity." Management consultants recommend this as a "business imperative" for companies in the travel industry.[68] The National Football League's employment resource group "seeks to foster a culture of inclusion and diversity."[69] The Cybersecurity and Infrastructure Security Agency urges employees to "foster a culture of inclusion."[70] The Appalachian State University's business school adopted an action plan with a goal of "foster[ing] a culture of inclusion with the college."[71] Louisiana State University's College of

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[66] The Court has recognized the relevance of academic freedom values to the First Amendment in Keyishian v. Board of Regents, 385 U.S. 589 (1967).

[67] Indiana Code, Title 21, Art. 39.5, Chap. 2, Sec. 1(b)(1) (2024).

[68] Sarah Dillon, The Travel Industry's Best Amenity? Its Diversity (December 17, 2019) (https://www.accenture.com/us-en/insights/travel/travel-industry-diversity).

[69] Commitment to Diversity (https://www.nfl.com/careers/diversity).

[70] Foster Belonging, Diversity, Inclusion, and Equality (https://www.cisa.gov/about/culture/foster-belonging-diversity-inclusion-and-equality).

[71] Action Plan (https://business.appstate.edu/global-civic-engagement/diversity-equity-inclusion/action-plan).

the Coast and Environment developed a roadmap promising that the school was "doing its part to foster diversity and ensure an inclusive, welcoming, and nurturing environment."[72] Pennsylvania State University now assures job applicants that it "foster[s] a culture of inclusion that supports both broad and specific diversity initiatives."[73]

Unfortunately, as generally used, the desire to "foster a culture" is just an aspiration and goal and not an identifiable action. As a result, DEI initiatives provide little guidance as to how a "foster a culture of free inquiry" element in a tenure standard might be implemented. Worse, such a tenure criterion invites standardless, subjective assessments of candidate performance. Such a criterion can easily be used to punish members of the faculty for illegitimate political reasons. Vague standards regarding "collegiality" frequently raise this concern, that professors might be denied tenure simply because they are disliked, express dissent, or frequently disagree with their colleagues.[74] It is not hard to imagine how the inclusion of a simple promotion requirement that a professor not be "unlikely to foster a culture of diversity and inclusion" might be abused. Would extramural expressions of disapproval of affirmative action or mere identification as a conservative be sufficient to mark a professor as unlikely to foster such an inclusive environment? Similar judgements might be made about whether a faculty member is unlikely to foster a culture of free inquiry and intellectual diversity. Rather than judging a candidate based on their professional conduct, such a requirement invites university officials to judge candidates on the basis of their attitudes or political beliefs.

Such a vague standard is also unlikely to affect faculty behavior in the way that legislators might intend. Universities are rapidly adding a DEI component to their tenure standards, but what this means in practice is far from clear.[75] Some institutions claim to have incorporated DEI into their tenure review, but their written standards suggest that this might be as basic as explicitly asking whether professors foster "an inclusive classroom where all students are encouraged to participate" or account for DEI-related service activities in the standard assessment of professional service.[76] In other words, little was changed regarding professional expectations and tenure standards.

In other cases, universities have prompted professors to engage in specific tasks in order to get credit for making DEI contributions that might be recognized when awarding

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[72] C&E Roadmap to Inclusion and Engagement (https://www.lsu.edu/cce/files/roadmap_engagement_inclusion_jan2024.pdf).

[73] https://www.nursing.psu.edu/jobs/tenure-line-open-rank-position-nursing/

[74] AAUP, *On Collegiality as a Criterion for Faculty Evaluation*, *in* POLICY DOCUMENTS AND REPORTS, *supra* note _, at 227.

[75] AAUP, The 2022 AAUP Survey of Tenure Practices (May 2022) (https://www.aaup.org/file/2022_AAUP_Survey_of_Tenure_Practices.pdf).

[76] *See, e.g.*, POMONA COLLEGE FACULTY HANDBOOK, 2023-24 66 (https://www.pomona.edu/sites/default/files/faculty-handbook.pdf); OREGON STATE UNIVERSITY FACULTY HANDBOOK (https://facultyaffairs.oregonstate.edu/faculty-handbook/promotion-and-tenure-guidelines#criteria). Both Pomona and Oregon State have been recognized for incorporating DEI into their tenure standards. Mariah Stewart, *Colleges Revise Tenure Requirements to Include Diversity and Inclusion Accomplishments*, INSIGHT INTO DIVERSITY (December 12, 2021) (https://www.insightintodiversity.com/colleges-revise-tenure-requirements-to-include-diversity-and-inclusion-accomplishments/).

tenure.[77] Requiring unique and measurable activities in order to gain tenure is likely to be far more consequential than simply encouraging professors to list their DEI service in the professional service portion of their dossier. If universities expect to shift faculty behavior, they would be more effective in doing so if they provided specific guidelines regarding expected activities that contribute to a culture of free inquiry rather than leaving fostering such a culture as an amorphous goal.

But what might it mean for a professor to be unlikely to foster a culture of free inquiry and intellectual diversity on campus? Some potential answers would simply replicate existing professional expectations for members of the faculty, though perhaps with stronger expectations that such transgressions will lead to discipline. Others might add to existing professional expectations, requiring professors to sacrifice some of their professional activities in order to make time to satisfy the new mandate. Still others might directly impinge on the scholarly freedom of professors threatened with potential punishment under this requirement.

Some forms of professional misconduct by members of the faculty might also be construed as subverting a culture of free inquiry on a college campus. Professors who engage in such misconduct are subject to professional discipline under existing policies, and the new statutory requirement might merely emphasize those expectations. At the extreme, a member of the faculty might actively disrupt campus activities with which they disagree. A professor who helped shout down or assault a politically disfavored speaker on campus or who tore down campus signs displaying political messages with which he disagreed would no doubt be undermining a culture of free expression and intellectual diversity on campus. Such a professor would also be violating common university policies and operating well outside the bounds of academic freedom protections.[78] Such professors can be disciplined under existing campus policies.

A more subtle disruption of campus activities might come with professors refusing to perform their expected duties in situations in which they disagree with the underlying activity, ideas, or people. Although such obstructive activity by professors can rise to the level of professional misconduct, it is frequently tolerated rather than disciplined. Such conduct might have nothing to do with free inquiry, but it is not hard to imagine cases in which professors engage in low-level noncompliance out of a hostility to the intellectual or expressive activities of others. Professors might, for example, refuse to grade field exams or sit on dissertation committees for graduate students with whom they disagree. Professors might refuse to perform committee work or complete administrative tasks in support of

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[77] *See, e.g.*, University of Illinois Urbana-Champaign Guide to Diversity, Equity, and Inclusion Work in the Promotion and Tenure Process (AY2023-24) (https://provost.illinois.edu/policies/provosts-communications/communication-9-promotion-and-tenure/guide-to-diversity-equity-and-inclusion-work-in-the-promotion-and-tenure-process/); University of Denver Making Diversity, Equity, and Inclusion in Promotion, Tenure, and Re-Appointment Decisions Visible (May 27, 2021) (https://duvpfa.du.edu/2021/05/making-diversity-equity-and-inclusion-in-promotion-tenure-and-re-appointment-decisions-visible/); Oregon State University A Resource Guide for Planning and Reporting Diversity, Equity, and Inclusion (DEI) Activities for Promotion and Tenure (October 1, 2023) (https://facultyaffairs.oregonstate.edu/sites/facultyaffairs.oregonstate.edu/files/2024-02/OSU%20Resource%20Guide%20for%20DEI%20in%20P%26T_2023.pdf).

[78] On disruptive protests by faculty, *see* Keith E. Whittington, *What Can Professors Say in Public? Extramural Speech and the First Amendment*, 73 CASE WEST. RES. L. REV. 1153-64 (2023).

intellectual activities with which they disagree. Such obstructive activities can range from explicit refusal to participate, to bullying and abuse, foot-dragging, feigned incompetence, and persistent absenteeism. Professors who behave in such a manner can shift work onto others and make university governance more dysfunctional, and universities need not condone or tolerate such behavior – and yet, they frequently do. In a university that claimed to value DEI initiatives, a professor who refused to perform any DEI administrative assignments or disrupted the functioning of a DEI committee could be expected to face discipline. If particular instances of such behavior are seen as subverting a culture of free inquiry, the Indiana statute would give further grounds, and perhaps further incentive, for taking disciplinary action. Disagreement with the substantive value of an activity is not legitimate grounds for refusing to competently perform professional tasks associated with that activity. Professors sometimes have to perform duties as part of their job functions that they think are meritless or misguided.

Classroom indoctrination would also run afoul of both traditional professional expectations and the new free inquiry mandate. There are, undoubtedly, those who would defend the appropriateness of "indoctrination," however defined, but indoctrination has long been held as outside the bounds of appropriate classroom conduct by university professors, or at least university professors at modern, secular research institutions.[79] The rejection of either the freedom or the duty to indoctrinate students was central to the AAUP's 1915 Declaration of Principles. Trustees who expected professors at "their" university to lead students to the correct conclusions on contested moral and political ideas were dismissed as part of a bygone past. Modern secular universities were not to be captured institutions spewing propaganda. The university was to be "an intellectual experiment station" that should foster a skeptical state of mind and an openness to ideas new and old, controversial and conventional.[80] Professor should not be forced to be propagandists, and the freedom to teach was the freedom to resist the pressure to act as such. But that freedom also came with a responsibility. Professors could not properly choose to be propagandists either. They could not substitute the dogma of the trustees or donors or politicians with a dogma of their own. Students had a right to hear "the divergent opinions of other investigators" and "the best published expressions of the great historic types of doctrine upon the questions at issue," and they should be free from having "ready-made conclusions" imposed upon them.[81] It was an abuse of academic freedom for the professor to take "unfair advantage of the student's immaturity by indoctrinating him with the teacher's own opinions."[82] College students were to experience a "genuine intellectual awakening," but they were to be awakened to the world of difficult and controversial ideas and not just to the truth as their professor sees it. Indoctrination is the enemy of free inquiry in the classroom.

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[79] For a potential dissent, see Simon Feldman and Afshan Jafar, *Professors are Not the Problem*, INSIDE HIGHER ED (March 20, 2024) (https://www.insidehighered.com/opinion/views/2024/03/20/indoctrination-professors-not-problem-opinion) ("Asking a white supremacist to consider "What is the best argument of the other side?"—the seemingly value-neutral question Flanagan reports her father routinely asked her while growing up—is not a recipe for moral transformation.")

[80] AAUP 1915 Declaration of Principles, supra note _, at 9.

[81] Ibid.

[82] Ibid., at 10.

The AAUP's 1915 Declaration echoed the much earlier inaugural address of the reformist Harvard President Charles William Elliot.

> Philosophical subjects should never be taught with authority. They are not established sciences; they are full of disputed matters, and open questions, and bottomless speculations. It is not the function of the teacher to settle philosophical and political controversies for the pupil, or even to recommend to him any one set of opinions as better than another. Exposition, not imposition, of opinions is the professor's part. The student should be made acquainted with all sides of these controversies, with the salient points of each system; he should be shown what is still in force of institutions or philosophies mainly outgrown, and what is new in those now in vogue. The very word education is a standing protest against dogmatic teaching. The notion that education consists in the authoritative inculcation of what the teacher deems true may be logical and appropriate in a convent, or a seminary for priests, but it is intolerable in universities and public schools, from primary to professional. The worthy fruit of academic culture is an open mind, trained to careful thinking, instructed in the methods of philosophical investigation, acquainted in a general way with the accumulated thought of past generations, and penetrated with humility. It is thus that the University in our day serves Christ and the Church.[83]

The final sentence suggests just how radical Elliot's ideas were in his day. The traditional view of the American university was that it served the church, society, and the truth best by beating into the heads of uncultured students the cherished dogmas of the day. Indoctrination was the point of traditional university education, but it was to be the point no longer. University students were no longer to be subjected to "dogmatic teaching" but were instead to be "made acquainted with all sides of these controversies." Controversial subjects were to be taught as controversial subjects, as subjects "full of disputed matters" that the student should freely investigate. Indoctrination sought to close the student's mind to what were in fact open questions. Education opened minds by confronting students with the debate.

The challenge is determining when teaching has tipped over into indoctrination.[84] The AAUP's Statement on Professional Ethics relates that "as teachers, professors encourage the free pursuit of learning in their students," and as such they must "demonstrate respect for students as individuals and adhere to their proper roles as intellectual guides and counselors."[85] Professors must "state the truth as they see it," and indeed they may seek to persuade students to that truth, but they are also to be reliable "intellectual guides" as the students embark on their own exploration of the world of ideas.[86] In response to an earlier wave of conservative complaints that university

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[83] ADDRESSES AT THE INAUGURATION OF CHARLES WILLIAM ELLIOT AS PRESIDENT OF HARVARD COLLEGE 35-36 (1869).

[84] *See also*, WHITTINGTON, YOU CAN'T TEACH THAT!, *supra* note _, at 152-158.

[85] AAUP, *Statement on Professional Ethics*, *in* POLICY DOCUMENTS AND REPORTS, *supra* note _, at 145.

[86] Ibid.

professors were indoctrinating their students, the AAUP tried to set the proper bounds on the freedom to teach. "Indoctrination occurs when instructors dogmatically insist on the truth of such propositions by refusing to accord their students the opportunity to contest them."[87] Professors are not precluded from "vigorously" asserting "a proposition or viewpoint, however controversial," so long as they do so in a way that does not "prevent students from expressing disagreement."[88] Students are to be given the "skills of critical independence" and not treated as passive receptors of truths handed down from on high.[89] Students should expect to encounter ideas with which they disagree and that are controversial. They should not be required to receive those ideas uncritically or be forced to embrace them as their own, but they can be expected to properly understand them.

Engaging in indoctrination was one of the charges of professional misconduct leveled at Angela Davis at UCLA when the board of regents sought to fire her in 1970. Davis was a rising star on the New Left, active in both the Communist Party and the Black Panthers, and she had only recently joined the university as an assistant professor of philosophy. It was her activism that drew the ire of state politicians and formed much of the rationale for her termination. As part of that process, an ad hoc faculty committee was constituted to examine her conduct, with the first charge being that she had "utilized her position in the classroom for the purpose of indoctrinating students."[90] The committee struggled with the charge, suggesting that "all teaching is a form of indoctrination; even when a teacher states the truth 'as he sees it,' he is indoctrinating his students," and worried that "those accused of indoctrinating are so designated primarily or exclusively because their perceptions of 'truth' do not accord with the perceptions of their accusers."[91] Ultimately, however, the committee appealed to the same standard for indoctrination that the AAUP has articulated. Faculty members had observed her classroom teaching and had found that "there was absolutely nothing that could be remotely regarded as indoctrination. Indeed, the heavy and apparent emphasis was on getting the students to think for themselves."[92] Another found that "I have rarely seen such scrupulous attempts to separate exposition from editorial comment" on the authors discussed in class.[93] By all accounts, Davis did not shy away from introducing her own favored ideas when relevant, but she also encouraged critical discussion, including disagreement with her favored ideas. As a practical effort to give meaning and effect to a professional expectation that professors not indoctrinate their students, other professors at least thought Davis operated within the bounds of academic freedom and professional responsibility. The regents ultimately accepted that finding.[94]

In common parlance today, "indoctrination" by professors seems to suggest another possibility as well, that professors unnecessarily and repeatedly use their classes to

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[87] AAUP, *Freedom in the Classroom, in* Ibid., at 21.
[88] Ibid.
[89] Ibid.
[90] *Report of Chancellor Young's Ad Hoc Committee*, 57 AAUP BULLETIN 405 (1971).
[91] Ibid.
[92] Ibid., at 407.
[93] Ibid.
[94] *Report of the Regents' Committee of the Whole*, 57 AAUP BULLETIN 413 (1971).

promote their political opinions.[95] They indoctrinate not by trying to compel students to accept their views, but simply by subjecting students to constant political harangues. This has less to do with inculcating a proper belief about course materials in the way that concerned Charles Eliot than with making the university inhospitable and uncomfortable to those with nonconforming political views. Through such actions, professors demonstrate to students that there are some political opinions have such weight that they can be freely expressed from the university lectern and imply that those who do not share those views are at best tolerated interlopers.

Such political asides already risk violating the germaneness requirement of the freedom to teach.[96] Standard academic freedom protections cover the introduction of controversial ideas and materials that have a "*relation to their subject*."[97] Subjecting students to unnecessary digressions is a violation of a teacher's responsibilities in the classroom in the best of circumstances, but the misconduct is heightened if those digressions involve controversial ideas that students did not need to encounter and to which they have no opportunity to respond or object. Rather than contributing to a culture in which students are free to explore and debate new ideas, they contribute to a culture in which students believe that some ideas are privileged and others should be suppressed or condemned.

If fostering a culture of free inquiry means, at least in part, not seeking to indoctrinate students in the classroom, professors are potentially vulnerable under the new statute if they do not take care that they allow room for disagreement among and from their students, including disagreement with the professor's favored views. Professors who seek to stifle criticism or rule reasonably related perspectives and arguments out of bounds are likely to find themselves under scrutiny. Likewise, professors who routinely break the germaneness requirement and take advantage of their captive audience to exhort them to adopt the professor's favored political opinions are at risk of subverting a culture of free inquiry. To this extent, the new statute simply reemphasizes already existing standards of professional conduct in the classroom, but those standards might not always be well observed or enforced.[98]

Most nettlesome will be an issue largely ignored in such earlier discussions of professional ethics. Professors have long been cautioned that when teaching controversial topics, they should not seek to suppress the controversy. They should introduce students to the professional disagreements on a given topic and welcome challenges by students to

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[95] *See, e.g., What Students Mean When They Say Professors "Indoctrinate,"* FIRE.org (October 1, 2007) (https://www.thefire.org/news/what-students-mean-when-they-say-professors-indoctrinate) (based on RateMyProfessors.com comments).

[96] See supra text at _.

[97] 1940 Statement, *supra* note _ (emphasis added).

[98] A common rejoinder to the charge of indoctrination will be unlikely to be availing. Professors frequently complain that they cannot even get their students to do the reading, so how could they possibly indoctrinate them. *See, e.g.*, Dan Mahoney, *The Myth of Indoctrination*, INSIDE HIGHER ED (July 18, 2023) (https://www.insidehighered.com/opinion/views/2023/07/18/we-couldnt-indoctrinate-students-if-we-wanted-opinion). Evidence that professors are not successful at altering the political views of their students may help take the political sting out of the charge of indoctrination, but codes of teaching ethics (and the Indiana statute) are not solely concerned with successful indoctrination. It is professional misconduct if the professor behaves as if he is trying to successfully indoctrinate a student. If a student ignores a professor, that does not absolve the professor of his classroom misconduct.

even the professors' own favored views. Such discussion has focused on how lectures are written and how classroom conversations are conducted. Is the professor one-sided in classrooms sessions, and does the professor tolerate dissent? But this ignores the question of grades. Grading seems to have been an afterthought, if that, through much of the twentieth century. In the political debates of the last few decades, it has been front and center (ironically even as grade inflation has become rampant). Do professors use grades to punish dissenters and reward sycophants? Regardless of how free-wheeling classroom discussions might be, is there only one right answer that will be acceptable on tests and papers? Do students understand that their own professional standing will suffer if they do not align themselves with the professor's favored views on controversial topics? Are students coerced by threat of a bad grade into parroting the professor's own views back to them rather than forming their own ideas? If professors are, as the AAUP put it, "to ensure that their evaluations of students reflect each student's true merit," then it would seem troubling for professors to treat open questions as if they were closed questions in their grading.[99] A proper evaluation of a student's academic performance requires a recognition of the student's "skills of critical independence" and not just their willingness to treat the professor's own personal views as authoritative.[100] Effectively monitoring whether professors are behaving professionally when evaluating students is extremely difficult, however. The grading process is not transparent, and evaluations often depend on both the specifics of course content and comparative judgments regarding other students. Students are not well positioned to recognize for themselves whether they have been graded fairly, and it is not easy for other members of the faculty to make that judgment either. The Indiana statute might tap into this popular concern with politically influenced grading, but it provides no better tools for addressing it.[101]

Other potential implications of a new requirement that professors foster a culture of free inquiry could go far beyond the normal professional expectations associated with being a member of the faculty. To the extent that they do, the requirement could itself subvert academic freedom on a university campus.

Perhaps the least intrusive, and most likely, implication of the free inquiry requirement is that professors will be given a new checklist of tasks to perform to indicate that they are satisfying the requirement. Such a checklist would have the appeal of giving faculty clear guidance about how to conform themselves to the new requirement while building on an existing model of similar checklists that have arisen in response to demands that diversity, equity, and inclusion considerations be incorporated into tenure decisions. Like the Indiana statute, such DEI mandates add a new layer of expectations that faculty

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[99] AAUP, Statement on Professional Ethics, *supra* note _, at 145.

[100] AAUP, *Freedom in the Classroom, supra* note _, at 21.

[101] A closely related issue might arise in how faculty perform their administrative tasks in the university. Rather than refusing to serve on committees relating to disfavored students or activities, a member of the faculty might use their position to advance their own personal preferences by punishing and obstructing those with whom they disagree. A professor who systematically puts on a thumb on the scale so as to bias departmental decisions against views and perspectives of which they do not approve might also be failing to foster a culture of free inquiry, but distinguishing between the appropriate exercise of scholarly judgment and abuse of the process will frequently be difficult.

must satisfy in order to be promoted.[102] Like the Indiana statute, the DEI mandates are not themselves especially clear and create the possibility that professors would risk their ability to be promoted if they simply carried out their professional duties as traditionally understood and expected. The result at many universities has been informal guidance that helps professors know what activities might count toward tenure given the new DEI mandates.[103] It would not be difficult to construct similar checklists for activities that might be understood to foster a culture of free inquiry – with the implication that professors who did not perform those activities were potentially failing to foster such a culture. Professors could, for example, be urged to teach classes on principles of free inquiry and conduct research on topics relating to free inquiry. New administrative posts could be created so that members of the department could take turns serving as free inquiry coordinators or as free inquiry advisors to faculty search committees.

Of course, such a free inquiry checklist would be subject to the same criticisms that one might have of the newly emerging DEI checklists.[104] Such a checklist would prioritize some areas of research inquiry and course development such that faculty time and energy would be drawn away from other topics that would otherwise command their attention given the intellectual demands of their discipline or their personal scholarly interests. By creating artificial demand for some scholarly topics over others, the university will be corrupting the path of scholarly development and impinging on the freedom of the faculty to engage in their own scholarly pursuits. Time and energy are finite resources, and universities will be redirecting them to create a surplus of activity on politically favored topics while creating less visible deficits elsewhere. Imposing such opportunity costs are problematic, but even more troubling is the pressure to engage in viewpoint discrimination in pursuit of the politically favored scholarly content. If scholars are to be rewarded for courses and scholarship relating to free inquiry, can they only expect to receive such credit toward tenure if they reach the politically favored conclusions? Will a scholarly article critical of, for example, intellectual diversity mandates in higher education count in favor of a candidate's tenure bid as being a contribution to the study of free inquiry, or will it count against such a tenure bid as being critical of a particular conception of a culture of free inquiry? Both faculty and university officials would have good reason to doubt that such a content-based distinction will be applied in a viewpoint neutral manner. Putting a thumb on the scale of scholarly studies to slant the conclusions that scholars will reach is deeply at odds with the commitment to free inquiry that modern universities should uphold and that academic freedom is designed to protect.

The potential problems in the fine print associated with any such checklist point toward the deeper problems that might arise from such a fostering a culture of free inquiry requirement for university faculty. There are at least three contexts in which serious conflicts between academic freedom and the free inquiry requirement could arise.

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[102] Matthew W. Finkin, *Diversity! Mandating Adherence to a Secular Creed*, 2 J. OF FREE SPEECH L. 451 (2023).

[103] *See, e.g.*, University of Wisconsin Secretary of the Faculty, Recommendations for Guidelines for Tenure and Promotion: Scholarly Activities that Enhances the Wisconsin Idea (https://secfac.wisc.edu/wp-content/uploads/sites/50/2021/01/DEI-Recommendations_for_TP.pdf); Indiana University Faculty Council, Subcommittee on DEI Work Metrics Definitions and Examples (https://facultycouncil.indianapolis.iu.edu/Committees/Subcommittee-on-DEI-Work-Metrics).

[104] *See* Whittington, *Diversity Statements*, *supra* note _.

First, the requirement could easily be understood to constrain acceptable scholarship conducted at the university. The primary mission of the modern, secular university is to seek the truth and advance knowledge. Freedom of inquiry is an important adjunct to that mission, but significantly no question is off the table at such a university – and that includes the ultimate purpose of the university and the value of free inquiry. So long as free inquiry itself is a "philosophical subject," the university cannot seek to close the books on how questions related to that subject must be discussed. Scholars might well wish to debate what a commitment to free inquiry requires, whether free inquiry is truly necessary to advance knowledge, whether free inquiry is even possible under current conditions, whether free inquiry should be curtailed in important ways, and many more issues besides.

These are not merely hypothetical issues. Herbert Marcuse, the Marxist philosopher of the New Left and mentor of Angela Davis, remains a highly influential figure for his call for "repressive tolerance."[105] In affluent democracies, Marcuse argued, tolerance was extended to "sense and nonsense" and "the stupid opinion is treated with the same respect as the intelligent one."[106] But if the "telos of tolerance is truth," then it should be limited to the liberatory intelligentsia who can point the way to true freedom and denied to "indoctrinated individuals who parrot, of their own, the opinion of their masters."[107] Stupid opinions, which could be identified by the vanguard of the proletariat, should be rightfully suppressed. Critical race theorists have identified their own set of boundaries on tolerance that should be patrolled and enforced for the sake of creating the conditions for emancipatory truth. Where "common sense" is "determined by, and for, Whtie people," then "free speech is an impossibility."[108] The material and epistemic conditions must be changed before the audience can be safely exposed to "nonsense." Some speech must be suppressed in order "to provide a campus atmosphere in which all contributors feel welcome safe."[109] "The words and actions of the powerful are not equivalent, either morally or politically, to those of the powerless," and thus it is sometimes necessary to silence the powerful so as to elevate the morally preferable speech.[110] The "historical, sociological, and philosophical baggage that comes with the modern American free speech right" makes it irredeemable – at least within some common strains of academic thought.[111]

Such theories might be right or wrong, but the important point is that they are prominent theories that offer arguments on vital questions regarding the limits of free inquiry. It is not at all clear that proponents of such academic theories can meet the Indiana statute's requirement that professors "foster a culture of free inquiry." If a department were to seek to hire or tenure a professor advancing the view of Herbert Marcuse, could a board of regents allow such an appointment to proceed? If our modern-day Marcuse was not to be a lone dissenter in an academic department but instead would be part of the dominant faction of a department's faculty, could the trustees accept the formation of such a center of

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[105] Herbert Marcuse, *Repressive Tolerance, in* A CRITIQUE OF PURE TOLERANCE (1969).

[106] Ibid., at 94.

[107] Ibid., at 90.

[108] David Gillborn, *Risk-Free Racism: Whiteness and So-Called "Free Speech,"* 44 WAKE FOREST L. REV. 555 (2009).

[109] RICHARD DELGADO AND JEAN STEFANCIC, MUST WE DEFEND NAZIS? 36 (2018).

[110] ANSHUMAN A. MONDAL, ISLAM AND CONTROVERSY 31 (2014).

[111] Louis Michael Seidman, *Can Free Speech be Progressive?,* 118 COLUM. L. REV. 2219 (2018).

research on campus or would a department so constituted be at odds with the requirements of state law? Would it matter whether the faculty in question acted on their theories of repressive tolerance, or would it be sufficient that they held, taught, and promoted such theories? Does it foster a culture of free inquiry if the professors teach their students and argue to their peers that some views should be restricted, silenced, and censored for the sake of the greater good?[112] In at least some circumstances, the Indiana statute would seem to require the trustees to define some paths of scholarly inquiry as incompatible with the values of the state's universities. Scholarship would need to be restricted – and professors would need to be excluded – in the name of promoting a culture of free inquiry.

Can a university dedicated to free inquiry tolerate critics of free inquiry? In principle, yes, and academic freedom in the United States has generally been understood to protect those who do not themselves believe in the value of academic freedom. It is less clear whether the Indiana statute's mandate that faculty must positively foster a culture of free inquiry would be consistent with that same level of tolerance.

Second, the requirement might be invoked in response to disfavored intramural speech and faculty actions in university governance. What does fostering a culture of free inquiry, free expression, and intellectual diversity mean within the context of university governance? There are myriad decisions that faculty members routinely participate in making as part of their professional responsibilities that might be understood to implicate fostering such a culture, and depending on what choices they make their actions could be understood to either contribute to the fostering of such a culture or the opposite.

Professors regularly must make decisions about the personnel who will join their departments in the future. Existing members of the faculty serve on committees that search for and evaluate candidates for faculty positions and participate in department votes on whether to extend such job offers. Similarly, members of the faculty decide which applicants to graduate programs should be admitted to study at the university. Such staffing decisions have substantial consequences for what classes will be taught in the future and what scholarly research will be pursued. In short, staffing decisions are constitutive of the intellectual life of the university.

Those staffing decisions frequently require judgments on what lines of scholarly inquiry are worth pursuing, as well as judgments about whether a particular individual is or is likely to pursue them in an interesting or useful way. The legal scholar Robert Cover once characterized the process of the creation of legal meaning as "jurisgenesis."[113] Legal meanings multiply and proliferate as communities invent or interpret new rules and practices, but

> Judges are people of violence. Because of the violence they command, judges characteristically do not create law, but kill it. Theirs is the jurispathic office. Confronting the luxuriant growth of a hundred legal traditions, they assert that *this one* is law and destroy or try to destroy the rest.[114]

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[112] ATHONY LEAKER, AGAINST FREE SPEECH 110 (2020).
[113] Robert M. Cover, *Nomos and Narrative*, 97 HARV. L. REV. 11 (1983).
[114] Ibid., at 53.

Professors are jurispathic as well. They too cut off some lines of scholarly inquiry and prune away the luxuriant growth of a hundred potential scholarly endeavors. Every new job offer or graduate admission decision gives life to some scholarly work but squeezes off others. When doing such "violence," are hiring committees fostering a culture of free inquiry or stifling it?

In a world of limited resources, some such decisions are inevitable. Some candidates will not be selected and departments will necessarily lose the intellectual life they would have brought to campus (while gaining others). But what if such choices are accompanied by particular substantive judgments? What if the jurispathic quality of hiring decisions is intentional? If a member of a hiring decision says during the course of committee deliberations, "I think postmodernism is played out and we should really be looking to hire someone who does something else," or "critical theory is an intellectual dead-end and we should not hire anyone who does such work," is that faculty member failing to foster a culture of free inquiry? Through their arguments and actions, that faculty member is seeking to exclude some lines of scholarly inquiry from the campus and narrow the intellectual diversity of the department. They are not just looking for a better quality representative of critical theory or postmodernism. They are looking to exclude such work entirely and prioritize other type of work in their place – perhaps by prioritizing more work along the lines of the department already does or by failing to replace departed scholars who once studied and taught those disfavored ideas. If the department's lone critical race theorist left the university, and a colleague said at the next faculty meeting, "this is a great opportunity to recommit to our traditional strength in liberal theory," could that professor be reported to the board of trustees for failing to foster a culture of free inquiry and intellectual diversity? Is it a viable defense to such a charge to argue that the department is better served, in that professor's judgment, by less intellectual diversity but better quality scholarship? Would the answer depend on whether the board of trustees happens to share the professor's judgment about the relative merits of critical race theory and liberal theory?

Of course, such discussions and such judgments are commonplace in academia. They are not only pervasive in hiring and admission decisions, but they are also routine features of everyday decisions about what courses should be offered, how undergraduate and graduate programs should be constructed, what centers and programs should be established, what speaker series and workshops should be created, and much more. Every faculty meeting discussing such matters could well become a minefield in which comments casting aspersions on some sets of ideas or schools of thoughts could become the basis for termination under this statutory requirement that the faculty must foster a culture of intellectual diversity. If a professor in an education school in Indiana speaks out in faculty meetings to complain about "so-called 'social justice' affecting academia in general" and "his concern that the field of higher education study is abandoning rigorous methodological analysis in favor of results-driven work aimed at furthering a highly dogmatic view of 'diversity,' 'equity,' and 'inclusion,'" his colleagues might be armed with another tool by which to punish him for expressing his dissent.[115] His rejection of some type of work as

[115] Porter v. Board of Trustees of North Carolina State University, 72 F.4th 573, 577 (2023). *See also*, Keith E. Whittington, *Does the Faculty Senate Need a Speech and Debate Clause? Intramural Speech and the First Amendment*, J. OF FREE SPEECH L. (2025).

"dogmatic" and "results-driven" can easily be read as undermining a culture of free inquiry and seeking to narrow the scope of intellectual diversity at the school. The threat of termination that would hover over internal faculty debates would hardly encourage free and robust discussions of core scholarly matters at the university.

Third, the requirement could be read as a rationale for disciplining faculty for extramural speech. Traditional policies protecting the speech rights of university faculty extend not only to their teaching and research but also to those occasions when they speak in public "as citizens."[116] In an era in which many matters of campus life are part of culture war politics and of interest to a broader public, professors might expect to carry their intramural disputes into a public sphere via podcasts, social media, and even mass media. In a world in which social media makes it possible to share workplace arguments with a global audience, professors might choose to rehearse their grievances in public. If a professor chose to write a newspaper op-ed complaining that academia had "gone woke" or that "whiteness" restricted the ideas that were taken seriously in academia, such extramural speech would traditionally be fully protected by academic freedom policies. With the Indiana statute in place, such an op-ed might instead be evidence that a professor has failed to foster a culture of free inquiry and intellectual diversity. Such public criticism of trends in higher education could well be understood to be efforts to discourage the inquiries and expression of faculty colleagues, and it might indeed have such an effect. Colleagues on the receiving end of public criticism of academic "wokeness" or "whiteness" might feel that their own views have been disrespected and their own speech made to feel unwelcome. The bid to persuade an outside audience that academia is too woke or too white might be an attempt to shrink, or at least move, the boundaries of intellectual diversity at the university, and if members of the public are persuaded by such arguments they might bring pressure to bear to stifle some lines of inquiry at the university. If professors go to the public to argue that higher education has too much critical race theory or is too obsessed with social justice, they risk running afoul of the Indiana statute. By contrast, if they were to make use of the same channels of communication to argue that universities do not host enough critical race theory and should make room for more, they can readily say that they are adhering to the terms of the statute by promoting greater intellectual diversity. Such asymmetric legal effects on public discourse are inconsistent with general First Amendment values and subversive of the kind of robust public debate about the future of academia that academic freedom norms should seek to protect.

V. MANDATING INTELLECTUAL DIVERSITY

The second prong of the Indiana statute is more obviously contentious. It specifies that members of the faculty who are "unlikely to expose students to scholarly works from a variety of political or ideological frameworks that may exist within and are applicable to the faculty member's academic discipline" should be removed from their positions on the faculty.[117] This intellectual diversity mandate is directly focused on teaching and has few

[116] See Whittington, *What Can Professors Say in Public?*, *supra* note _.
[117] Indiana Code, Title 21, Art. 39.5, Chap. 2, Sec. 1(b)(2) (2024).

implications for scholarly research or the kinds of intramural or extramural speech that might be affected by the requirement that professors foster a culture of free inquiry.

This statutory requirement does mark a highly unusual legislative intrusion into university classroom teaching. Unlike "divisive concepts" legislation, it does not purport to ban the advocacy or discussion of some ideas or viewpoints in class.[118] Unlike a detailed civics mandate, it does not specify what readings or content must be included in any given university class.[119] The precise content of university classes, the ideas to be discussed, and the perspectives to be advanced are left in the hands of individual instructors by SB 202. Even so, the intellectual diversity mandate does mark a political effort to alter what professors teach. It might add ideas to the class rather than suppress them, but it substitutes a political judgment on how classes should be taught for professorial judgment, even if the political judgment is pitched at the fairly abstract level of "variety is good."

SB 202 punctures professorial autonomy in course design and content, even if the intrusion is relatively modest. Of course, once the principal is established that politicians can reasonably establish guidelines for university course content, then increasingly specific guidelines could follow. The principle in question is whether university faculty are answerable to political supervisors for what materials they assign in class. Traditional academic freedom principles would say "no," but the Indiana state legislature has now asserted that the answer moving forward will be "yes."

One can easily speculate about how politicians might abuse such a power in the future, but it is worth observing that SB 202 is not as extreme as it has sometimes been portrayed. Some opined that the bill would require the geography department to teach flat earth theory and the history department to teach the Bible.[120] Others have asserted that the bill would require that instructors "expose students" to "white supremacy," young earth theory,[121] and Holocaust denial.[122] The text of the bill does not support such readings.

SB 202 requires faculty to expose students to a "variety" of works, but that mandate recognizes two important constraints and is itself delimited. As for constraints, SB 202 explicitly constrains the range of works that need to be assigned in class to "scholarly works" making use of "frameworks that may exist within . . . the faculty member's discipline."[123] Further, those scholarly works must be "applicable to the faculty member's discipline."[124] In essence, the statute recognizes both the professional competence and the germaneness constraints associated with academic freedom in teaching. The "variety" that the statute contemplates involves works that are both professionally valid and subject-

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[118] *See, e.g.*, Stop WOKE Act, § 1000.05, Fla. Stat. (2002).

[119] *See, e.g.*, NC HB 96 (https://www.ncleg.gov/BillLookUp/2023/hb%2096).

[120] Morton J. Marcus, *Eye on the Pie: "Intellectual Diversity" Bill is Callous*, WINCHESTER NEWS-GAZETTE (March 26, 2024) (https://www.winchesternewsgazette.com/news/eye-on-the-pie-intellectual-diversity-bill-is-callous/article_6d88275c-ead8-11ee-9f9c-975ec05542a1.html).

[121] Susan Luther, *Indiana's Dumbing Down of Education Continues with Signing of SB 202*, THE BLOOMINGTON HERALD-TIMES (April 5, 2024) (https://www.heraldtimesonline.com/story/opinion/columns/2024/04/05/columnist-writes-indiana-higher-ed-bill-is-a-good-reason-to-move/73190305007/).

[122] Caroline Beck, *ACLU Sues to Block Law that Might Limit College Professors' Free Speech Rights*, INDYSTAR (May 7, 2024) (https://www.indystar.com/story/news/education/2024/05/07/aclu-moves-to-block-sb-202-free-speech-on-public-colleges-and-tenure/73604967007/).

[123] Indiana Code, Title 21, Art. 39.5, Chap. 2, Sec. 1(b)(2) (2024).

[124] Ibid.

matter relevant. Just as no professionally competent scholar of the Holocaust should be teaching (as true) works that deny the existence of the Holocaust, so SB 202 does not mandate the use of such works. There is nothing in the statute that would require professors to assign works of discredited scholarship or non-scholarly works. SB 202 is not a generalized "equal time" requirement that directs instructors to always include an alternative perspective on every issue discussed in class. Students are provided no right to insist that their own preferred perspectives be incorporated into any given class.

Moreover, SB 202 does not require that any particular perspective ever be taught in a class. It mandates only "variety." It says nothing about how that variety mandate might be satisfied. The lack of guidance about how to satisfy the mandate creates its own problems, but it does at least avoid the problem of telling any professor that they must incorporate pro-slavery arguments into their class or teach the literal truth of the Bible or any other specific idea to which the professor might object. If a professor does not want to expose students to white supremacist works or creationism, there is nothing in the statute that would require a professor to do so.

Though the bill might have been motivated by the alleged dearth of conservative ideas taught in university classes, there is nothing in the legislation that directs instructors to make room for such ideas – and certainly nothing that directs instructors to remove any particular ideas from their classes. The intellectual diversity mandate as written might require professors to add to their syllabi, but there is no implication that anything must be subtracted from the curriculum. In that sense, the intellectual diversity mandate is far less targeted than divisive concepts bans, and it provides for far looser political control over university teaching than do many other proposals that have recently been circulating in state legislatures. (Whether it will be implemented as loosely as it is written is a separate question.)

An intellectual diversity mandate in and of itself, however, poses problems for academic freedom, the coherent construction of a university curriculum, and the functioning of a university. Intellectual diversity for diversity's sake is not itself a scholarly virtue and can be counterproductive to the educational enterprise. Four major problems arise. First, SB202 does not provide any guidance as to what counts as adequate "variety of political and ideological frameworks." Second, variety along "political and ideological" lines is often orthogonal to educational quality. Third, a one-size-fits-all model of curriculum design makes little sense. Fourth, an intellectual diversity mandate is at odds with prioritizing scholarly judgment.

What counts as adequate "variety" under SB202's intellectual diversity mandate? We are not told. "Variety" is a vague term. That is, like "rich" or "tall," the word "variety" has many borderline cases. "There is no clear or definite boundary between the items to which the term applies and the items to which it does not."[125] A syllabus that includes only one reading clearly does not offer a "variety," while a syllabus with a hundred quite diverse readings would. But between such clear cases "there is no saying" whether a particular syllabus does or does not satisfy the requirement that it include a "variety" of materials.[126]

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[125] DIANA RAFFMAN, UNRULY WORDS 2 (2014). See also, Lawrence B. Solum, *The Interpretation-Construction Distinction*, 27 CONST. COMM. 95, 98 (2010).

[126] ANDREI MARMOR, THE LANGUAGE OF LAW 88 (2014).

What might constitute a "variety of political and ideological frameworks" in a class? If I were to teach a seminar on originalism in constitutional interpretation, what might be necessary to satisfy the intellectual diversity mandate? Some critics (and supporters!) of originalist theory now complain of "the existence of an endless variety of constitutional theories all claiming the mantle of originalism."[127] The variety might be so "endless" that I might worry that my originalism syllabus falls short of the mandate if I leave some theories out. But surely we can at least assume that the intellectual diversity mandate does not require all possible variety. There might not even be enough weeks in the semester to meet such a mandate. If, however, I were to incorporate readings from liberal originalists, libertarian originalists, democratic originalists, and Burkean originalists, would I have included enough variety to satisfy the statutory mandate? That would be a lot of different flavors of originalism, but presumably still more flavors could be found. Must I be sure to include Thayerian originalists, original intent originalists, original meaning originalists, positivist originalists, natural law originalists, and original methods originalists? But if I did include those particular varieties of originalists, would that address the need for a "variety *of political and ideological frameworks*" or would I need to be sure to include not just different types of originalist theories but originalists of divergent political valence? Is it possible to teach a seminar on originalism that assigns only originalist scholars or must such a seminar necessarily include critics of originalism as well in order to satisfy the statutory mandate? Is it possible to teach a political theory class on "liberalism," or must it be a class on "liberalism and its critics"? Similarly, a class on "Marxism," or only "Marxism and its critics"? If I must include critics, must those critics themselves come from diverse perspectives? If I teach a class on liberalism and its critics, but the "critics" are all from the left and none from the right (or vice versa), am I in danger of failing to satisfy the intellectual diversity mandate?

Such a vague mandate is a recipe for abuse. In practice, the specification of what will count as adequate variety will be arbitrary. Professors will have little notice as to whether a syllabus that they have put together will satisfy expectations, and yet their future employment will be on the line. Since most courses are not readily comparable, the fact that some previous courses have implicitly or explicitly been regarded as acceptable will provide little guidance as to whether any particular new course will similarly be regarded as acceptable. As one scholar notes, "the most obvious aspect of legislating transparently vague standards . . . is that the legislature in effect delegates the decision of how to make the standard more specific to the courts or to administrative agencies."[128] In this case, the decision of whether professors have sufficient variety in their courses is effectively delegated to the university board of trustees, and the discretion thereby entrusted to that governing body is nearly boundless. There is no identifiable metric that could determine whether the board is being consistent across individual cases and few guardrails to prevent boards from allowing extrinsic factors to affect their judgments as to whether professors have satisfied the mandate. By the very nature of the vague standard, it will always be possible for the board to assert that a professor has fallen on the wrong (or right) side of the line. Whether or not board members use the intellectual diversity mandate as a pretext to rid the university of professors who offend their sensibilities, it will not be difficult for

[127] Thomas B. Colby and Peter J. Smith, *Living Originalism*, 59 DUKE L. J. 239, 260 (2009).
[128] Marmor, *supra* note _, at 97.

motivated reasoning to lead them to the same conclusion that displeasing members of faculty also tend to fail the requirement.

Is political variety an educational virtue? Not usually. There are occasions when including course materials or concepts from a variety of "political and ideological frameworks" is a useful rule of thumb but such occasions are likely to be relatively rare. More often, "intellectual diversity" in a class is better served by focusing on scholarly disagreements that have little or nothing to do with political disagreements. If one were to design a class in "judicial politics," there are number of choices to be made as to what topics, readings, and perspectives should be included in the syllabus. Essentially none of those choices are best characterized as involving political or ideological frameworks. Such a course could be better or worse depending on whether it included attitudinal, strategic, and institutionalist perspectives on how judges behave or whether it included works making use of formal theory, statistical evidence, or qualitative materials or whether it included readings on judicial decisionmaking, judicial impact, or judicial selection. All those decisions would affect the intellectual diversity and quality of the class, but they would not involve any consideration of diverse political frameworks as conventionally understood. A class in international relations theory might be better if it included not only proponents of the theory of democratic peace (that democratic nations rarely go to war with one another) but also critics of the theory, but that assessment of how best to improve the educational quality of the course is not affected by taking politics into account.

Political diversity might sometimes be educationally relevant. There are, for example, multiple ways in which introductory courses in American politics are taught at the university level. Some classes rely on a textbook that introduces students to the main components of American government and politics. Some classes are organized around scholarly books and articles that provide a deeper analysis of some aspects of American politics. Some classes are organized around more popular books and articles that discuss issues and controversies in contemporary American politics. If an instructor were to put together a syllabus of the third type but only include authors writing from the perspective of the political left, the class might reasonably be thought not only to violate the intellectual diversity mandate in SB202 but also to be educationally inadequate. An introduction to the political issues of the day that treated all the relevant debates as occurring within the Democratic Party or between the Democratic Party and the Democratic Socialists of America would be doing a disservice to the students and misrepresenting the state of American politics.[129] Incorporating a broader array of political perspectives into the class would improve its educational quality. But asking whether the course included a variety of political perspectives would be orthogonal to the question of educational quality if it were of either of the first two types and primarily made use of a textbook or scholarly articles. The question of political variety would tell you little about the quality and appropriateness of the assigned readings or even about whether students would be receiving a range of perspectives on the subject matter of the class.

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[129] Though note that a course that offered students materials exploring a robust debate between American socialists and liberals would be providing a "variety of political and ideological frameworks" in some sense, and so such a class might be thought to meet the statutory mandate *while still being* educationally deficient in its range of political diversity.

Should university classes always incorporate a variety of materials? Not necessarily. Indiana's intellectual diversity mandate directs public universities to terminate faculty members who are "unlikely to expose students to scholarly works from a variety of political or ideological frameworks that may exist within and are applicable to the faculty member's academic discipline." As written, the mandate applies to individual faculty members regardless of what set of classes they might teach and regardless of what is in fact being taught in a given department or in the university. Professors are generally specialists, not generalists, and that applies to their teaching as well as their research. Thus, for example, a political science department might employ a political theorist specializing in liberal theory and another specializing in critical theory. It would not be surprising if their courses differed substantially, and indeed it might be expected that the critical theorist taught courses with content focused on such topics as "radical political theory" and "critical theory and the study of politics." Similarly, a sociology department might hire a professor specializing in Marxist theory and expect that professor to offer courses reflecting that specialization. Perhaps a class on "class and culture" taught by such a professor might benefit from the inclusion of cultural theory grounded in Emile Durkheim or Michel Foucault rather than Marx, but there are reasonable scholarly arguments for limiting the focus. That might even be more true if the Marxist professor in question primarily taught advanced seminars rather than introductory surveys.

Put differently, is there an educational rationale for every course in a given academic discipline to expose students to a set menu of frameworks that "may exist" within the discipline as a whole? It is often the explicit purpose of introductory survey courses to provide students with brief exposure to a wide range of questions and perspectives that arise within a given field of study. Such courses are, however, a small fraction of the normal offerings in a department. Students are expected to quickly advance beyond such surveys and into more specialized lecture classes and even more specialized seminars or more specialized still individual tutorials. Rather than constantly rehearsing the full range of perspectives available in the discipline, different types of classes will serve different purposes and expose students to a more limited range of ideas. From an educational perspective, we evaluate professors on the basis of the specific courses they teach and the particular function that those courses are designed to serve. It undercuts both division of labor within the department and specialization in the curriculum to demand that each professor be assessed by the same metric and a metric that is most applicable to the most introductory of classes. Requiring that professors constantly take care to review the range of ideas that "may exist" in the discipline means crowding out more fruitful lines of inquiry and shrinks the diversity of classes that can be offered. Rather than creating opportunities for students to explore something new, such a directive has the effect of forcing students to repeat the same concepts and materials again and again.

Diversity should not take priority over scholarly judgment in designing a class. Many ideas "may exist" within an academic discipline. Faculty are employed to exercise their scholarly judgment to introduce students to the ideas most worth their time and attention for particular purposes within the curriculum. Professors might abuse their discretion by excluding ideas that deserve attention, but professors also err if they exercise no judgment and simply put in front of students any idea that might exist in the world. Faculty members have traditionally been expected to exercise some quality control over the content of their classes. A diversity mandate necessarily seeks to override those individual (or even

collective) judgments about quality. Consequently, any such mandate would reduce the educational quality of university courses as materials are included simply in order to satisfy an arbitrary quota.

Concepts that might be included in a given class might be arrayed into four categories. Some concepts the professor in charge of the class might think are sound and correct. Some concepts the professor might think are incorrect but are nonetheless within the mainstream of the discipline and accepted as correct by many others in the field. Some concepts the professor might think are incorrect and are in fact marginal in the discipline and accepted as correct by only a small number of scholars in the field. Other concepts might be more-or-less universally viewed as unsound by scholars in the discipline. By its terms, SB202 would seem to exclude concepts in the fourth category from the intellectual diversity mandate. Instructors are free to decline to expose students to frameworks that do not "exist within" the field. SB202 would not similarly exclude concepts in the third category, however. Ideas that are marginal within the discipline nonetheless exist within the discipline, and professors might feel compelled by SB202 to expose students to such ideas no matter how flawed most scholars in the field think that they are. No matter how mistaken, idiosyncratic, and unusual such ideas might be, the intellectual diversity mandate would put them on par with the ideas that are taken to be conventional wisdom in the field. An economics professor teaching monetary theory might introduce students to concepts derived from both Keynesian and monetarism, but might well think it malpractice to expose students to modern monetary theory or Austrian theory though adherents to both schools of thought can be found among academic economists. SB202 might override that judgment and be understood to require that every monetary economics class include material on modern monetary theory.

Things become potentially more complicated when we contemplate the boundaries of what "that may exist within and are applicable to the faculty member's academic discipline." Academic disciplines are artificial constructs, with permeable and shifting boundaries. At the same time, multiple disciplines often study the same phenomenon, though from different perspectives and for different purposes. What is a "faculty member's discipline" for purposes of what ideas might exist within it and be applicable to it? Is it defined by the faculty member's own graduate training or their academic appointment? Or can be it be defined more broadly to include others who might also study the same subject matter? Must a political scientist pay attention to what ideas exist within such cognate disciplines as sociology or economics or history or law? Must an empirical political scientist pay attention to what ideas exist within normative political theory? Can a professor in a women's studies department ignore relevant ideas that exist within the philosophy or economics department? Can a professor in the economics department ignore ideas regarding economics taught in the history or African-American studies or sociology departments? Must an economic historian in an economics department take seriously the New History of Capitalism that has primarily arisen in history departments? Must law professors educate themselves – and their students – in the ideas to be found among legal scholars in political science departments, especially so if a law school somewhere were ever unwise enough to appoint a political scientist to be a member of its faculty? Given the diversity of academic disciplines, there are many ideas that are well outside the mainstream in some academic disciplines and yet completely within the mainstream of

others, and ideas not infrequently migrate outside of (or are expelled from) their originating disciplines and flourish elsewhere within the university.

Professors might insulate themselves from the effects of SB202 by building up strict walls of separation between increasingly homogeneous academic disciplines. If professors can define for themselves what constitutes the boundaries of their disciplines – and thus what "may exist within" it – then they might become intellectual islands isolated from heterodox thought. If they cannot, however, they may find the content of their classes to be at the mercy of the most unorthodox members of academia.

Intellectual diversity is a means, not an end in itself, in university education. Exposing students to multiple competing concepts or frameworks might sometimes be valuable, but much depends on the purpose of the class and the frameworks in question. Assessing which concepts to incorporate in a given class almost never turns on the political valence of the concepts as opposed to such considerations as their soundness, relevance, and prominence. SB202 directs professors to include a greater variety of perspectives in their classes but takes no account of scholarly judgments about those perspectives and provides no guidance as to when the demand for variety might be satisfied. In some cases, educational quality might be enhanced if professors were more thoughtful about the range of ideas that they incorporate into their classes. Often, however, the quality of courses will suffer as risk-averse professors lard their classes with materials to satisfy political rather than scholarly demands.

VI. IMPLEMENTATION CHALLENGES

SB202 creates serious administrative challenges for universities that will have to figure out how to comply with the new statutory mandate. As discussed, the mandate poses some risks for academic freedom and the performance of the scholarly and educational mission of state universities, and universities should seek to mitigate those risks to the degree possible. Moreover, the mandate creates new sources of uncertainty for faculty, which can be somewhat ameliorated through implementation choices. The statute by its terms directs universities to create new procedures to enforce its terms, and choices will have to be made about how those procedures are designed. Universities could easily make the effects of the statute worse if those procedures are not designed well.

By necessity, universities will through policy or practice or both flesh out the effective meaning of such vague terms as fostering a culture of free inquiry and exposing students to scholarly works from a variety of political and ideological frameworks.[130] Universities should seek to do that self-consciously rather than haphazardly. In doing so, they can both provide guidance to faculty about how to conduct themselves on campus and reduce the danger that such statutory language will be abused in ways that are inimical to the scholarly mission of the university.

The enforcement mechanisms contemplated by the statute create three new decision points that will have to be designed and managed. The statute requires universities to create a system for receiving and processing student complaints.[131] It

[130] Indiana Code, Title 21, Art. 39.5, Chap. 2, Sec. 1(b) (2024).
[131] Indiana Code, Title 21, Art. 39.5, Chap. 2, Sec. 4 (2024).

requires universities to establish an office for administrative oversight of faculty compliance with the statutory mandates.[132] It empowers and directs university trustees to actively supervise faculty performance in light of the new legislative goals.[133]

The ultimate authority responsible for defining and implementing SB202 is the board of trustees for each state university. As a consequence, only the board can provide meaningful guidance – and assurance – to faculty as to what kind of conduct will satisfy the statutory directives. Trustees would be well served by establishing guidance documents that can effectively liquidate the terms of the statute. Such documents would help reduce some of the mischief that the law might otherwise create.

There are several reasons for generating such documents now. First and foremost, such an authoritative interpretation of the vague terms of the statute will be necessary to provide meaningful guidance for the future behavior of university faculty and administrators. Given the stakes imposed by the statute, faculty will want a safe harbor and some assurance that the terms of the statute will be applied in some predictable fashion. Arbitrary enforcement will not only encourage risk-averse faculty to find employment elsewhere, but it will also fail to achieve the putative goals of the statute in altering faculty behavior in predictable and productive ways. Professors and campus administrators who will be on the front lines in attempting to comply with the statutory mandate will require some guidance as to how its terms should be understood. The statute cannot achieve any positive results if professors have no idea what "variety" might be adequate to satisfying the legislative mandate when they are designing new courses, and professors will not be meaningfully deterred from inhibiting a culture of free inquiry if they do not know what fostering such a culture might entail. The bare terms of the legislation do not do enough to make foreseeable what kinds of faculty conduct might result in dismissal. The trustees have a responsibility to provide more substantive guidance so that faculty have an opportunity to harmonize their behavior accordingly.

Trustees would also benefit from setting their own expectations now for how the mandate should be applied in future cases. The vague statutory terms create serious risks of inconsistency in application by the trustees as they evaluate faculty promotion and retention decisions over time and if individual cases come amidst specific controversy. Professors who are otherwise controversial could easily find themselves perceived as not encouraging enough intellectual diversity even if the evidence that they have conducted themselves differently than other members of the faculty is thin. Trustees can guard themselves against such inconsistencies and abuses by deliberating about the proper approach to reviewing faculty files in a moment of calm. The standards by which faculty are to be judged are best determined in the abstract and outside the context of a particular controversy where passions might run high and cloud judgment. Trustees should seek to tie their own hands with a consistent and manageable standard rather than allow themselves to be tempted to determine that a troublesome professor has failed to meet some vague standard of incorporating enough variety into his classes. If professors are to be terminated under the terms of the statute, it should not simply be because they espouse substantively controversial views or because the statute has become a convenient tool for ridding the

[132] Indiana Code, Title 21, Art. 39.5, Chap. 2, Sec. 4 (2024).
[133] Indiana Code, Title 21, Art. 39.5, Chap. 2, Sec. 2 (2024).

university of professors who meet professional standards but who have become a cause of public acrimony.

Of course, it will not be enough simply to have documents that guide the interpretation and application of the statute. The substantive content of those documents should improve rather than diminish the performance of the university. In order to do so, trustees should focus on identifying instances of professors violating traditional professional and academic norms when evaluating cases under the statute. As noted, there is some potential overlap between the statutory directive and already established and recognized professional norms.[134] Professors who interfere with the rightful activities of others on campus, neglect or refuse to perform their duties, or who engage in teaching misconduct by attempting to indoctrinate students are already properly subject to discipline and would amply justify trustee determination that they have failed to foster a campus climate of free and open inquiry.[135] Trustees can usefully cabin the scope of the intellectual diversity mandate by explicitly emphasizing that the relevant variety of materials that professors are expected to incorporate into their classes are materials that are regarded as conventional and mainstream scholarly frameworks within the faculty member's own teaching discipline and that are germane and appropriate to the particular classes that the professor teaches.[136] Trustees should be seeking to insure that individual professors are living up to accepted professional standards in their teaching but should not be seeking to impose extraneous political litmus tests of their own. Professors teaching advanced seminars should be judged by the professional expectations of a competently constructed syllabus in such a seminar and not be pressured by students or others to lard their syllabus with materials that are superfluous to the course design or at odds with disciplinary standards. Trustees should likewise take care that they follow the terms of the statute and evaluate individual professors and not individual classes. Professors should be given room to design and teach different courses differently and should be evaluated on the basis of the portfolio of courses that they have actually taught rather than a counterfactual portfolio that they could have taught. Trustees should be asking whether professors are following educational best practices in designing the courses that they have been assigned and not whether any given professor has shown themselves to be an intellectual polymath.

Trustees could follow the path of DEI initiatives and create a checklist of approved faculty activities that would positively demonstrate satisfaction of the statutory mandates. Professors could be told that the trustees will certify that they have met the requirement so long as they perform designated activities and meet specified metrics. While such an effort to translate the vague requirements of the statute into concrete practice would have the advantage of creating clear expectations for faculty and a fairly mechanical process of evaluation for campus administrators and trustees, it would do little to enhance the quality of state universities. It would distract the faculty from pursuing their core professional responsibilities and require them to depart from their own professional judgments about scholarship, teaching, and academic administration. It would generate an egregious surplus of campus activity meant to demonstrate "free inquiry" and intellectual and political "variety" while doing little to substantively improve the intellectual and political climate on

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[134] See infra _.
[135] See infra text at notes _.
[136] See infra text at notes _.

college campuses. Scholarly institutions are better served by creating clear expectations that faculty will be held accountable for conducting themselves in a professionally responsible manner.

To be sure, such an approach to implementing the statute will not be wholly satisfying for those who would seek to alter and not just enforce scholarly standards. Such an approach would give teeth to professional standards and norms while adhering to principles of academic freedom. Professors who block entrances to campus libraries in order to protest foreign affairs or shout down speakers with whom they disagree or discourage students from exploring controversial ideas raised in a class will not fare well under the statute so implemented. But professors who engage in intramural and extramural speech advocating against some scholarly pursuits or who pursue scholarship critical of liberal free inquiry or who work within ideologically narrow scholarly disciplines and teach accordingly will not be singled out for punishment for doing so. Professors who decline to participate in the events hosted by the local chapter of the Federalist Society would not fall afoul of such an understanding of the requirements of the statute, but a professor who sought to prevent a Federalist Society chapter from forming or from hosting events or who denounced student members from the classroom lectern would be in jeopardy of adverse employment actions. Politicians who believe that there is not enough Marxism in traditional economics classes or enough classical liberalism in traditional gender studies classes would be disappointed that the intellectual diversity mandate has not broken those intellectual cartels, but this statute would be a crude tool for attempting to accomplish such results and such objectives are not required by the plain terms of the existing law. It is possible to faithfully implement the statute in such a manner as to reinforce and adhere to academic freedom norms and conventional scholarly standards, and trustees would be acting in the broader interest of their institutions by doing so.

The law requires that universities "establish a procedure that allows both students and employees to submit complaints" that members of the faculty are not meeting the criteria of the new mandate.[137] Students and other members of the campus community often have direct observation of faculty conduct that is not directly visible to colleagues and campus officials. If a faculty member engages in inappropriate behavior in a classroom or when interacting with a student group, it is often the students alone who will witness that behavior. Some systematic mechanism for allowing students to report alleged faculty misconduct is valuable in this context as it is in other contexts. At the same time, experience with campus reporting systems amply demonstrates that those filling reports do not always themselves understand whether what they have observed in fact constitutes misconduct. Students might know what they witnessed, but that does not mean that students know what should and should not be reported. Moreover, witness reports can be unreliable, and that is true in this context as it is in others. If such complaints are to be valuable, they must at least be credible. Anonymous reports or reports that do not include sufficiently detailed information will be hard to verify, and as a result will need to be heavily discounted or ignored. Complaints that do not provide first-hand accounts of alleged misconduct should likewise be heavily discounted. Trustees should anticipate that such a reporting procedure will generate a substantial number of false positives.

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[137] Indiana Code, Title 21, Art. 39.5, Chap. 2, Sec. 4(a)(1) (2024).

The law requires student complaints be submitted "to appropriate human resource professionals and supervisors for consideration in employee reviews and tenure and promotion decisions."[138] The statute does not contemplate any direct or immediate disciplinary process to follow from receipt of student complaints. Any complaints received about a faculty member are simply to become part of the dossier that is eventually reviewed at the point of regularly scheduled promotion or retention decisions. Nonetheless, complaints will have to be assessed for quality. Some complaints that will be received through such a reporting procedure will allege facts that even if true would not actually constitute a violation of the statutory requirement. Such complaints can and should be identified as such and not give rise to lengthy investigations and adjudications. In other cases, the alleged facts of the complaint would indeed be a cause for concern, and it will be necessary for university officials to determine whether the complaint is credible. It would be inappropriate for uncorroborated complaints to simply be taken at face value. In some circumstances, evaluating the quality and credibility of a complaint will require some effort to determine whether there is any evidence to support it beyond the bare text of the complaint itself. Even though no employment action might be taken regarding a particular complaint for several years (a complaint filed against a first-year assistant professor, for example, would ultimately become part of a tenure file to be evaluated six or more years later), any effort to corroborate the complaint will have to be more timely. If a student alleges some classroom misconduct, it will be necessary to determine whether any other students in the class can corroborate the misconduct. If a professor who is the subject of a complaint is not given a meaningful opportunity to hear the complaint and submit a response in a timely manner, it might well become effectively impossible for the professor to develop an effective response. If a professor is not made aware of an alleged incident on campus until years after the fact, there will be limited possibility of rebutting or contextualizing the complaint. Campuses will need a process for filtering complaints based on whether they credibly raise actionable misconduct and a process for investigating such credible charges of misconduct and soliciting a response.

Regardless of the intake process for student complaints, it is essential that they ultimately be processed by faculty peers. The types of faculty misconduct contemplated by the statute all involve questions of professional performance in accord with scholarly standards. Even given an agreed upon factual record, the question of whether the alleged behavior is an example of professional misconduct is one best assessed by faculty peers. Is a faculty member engaged in indoctrination rather than education? Is a faculty member subverting a culture of free inquiry? Is a faculty member failing to adhere to professional standards of intellectual quality in designing a class? Answering such questions cannot be delegated to "human resource professionals." They will have to be evaluated by scholarly peers, just as the traditional elements of a promotion and retention dossier are evaluated by scholarly peers. The record of complaints received through these statutory procedures should ultimately be provided to a faculty committee to evaluate, comment upon, and subject to a preliminary judgment. There is no reason why the relevant faculty committee should not be the same committee contemplated by ordinary tenure promotion and retention procedures on campus. Just like student teaching evaluations and scholarly publications, any complaints filed through this statutory procedure should become part of

[138] Indiana Code, Title 21, Art. 39.5, Chap. 2, Sec. 4(a)(3) (2024).

the promotion and retention record evaluated by departmental colleagues, the relevant "supervisors" for members of the faculty. The professional record thus assembled and voted upon would then makes its way as a whole through the various steps of an ordinary tenure process.

The law requires that the board of trustees review faculty conduct and determine that they have satisfied the statutory mandate when making promotion and retention decisions.[139] Complaints about faculty misconduct under the statute are to be provided "for consideration in employee reviews and tenure and promotion decisions" by "supervisors, which suggests that they might be balanced within a holistic reading of the overall tenure file.[140] Trustees, by contrast, are directed to separately "certify" that professors under review have satisfied statutory criteria in order to be promoted or retained.[141] This suggests a minimal standard of professional conduct along this dimension that will be necessary to justify promotion and retention. Some degree of misconduct under the statute could not simply be counterbalanced by an outstanding record of scholarly research, for example. The board will need to establish and enforce a floor of acceptable professional conduct in regard to a culture of free inquiry and intellectual diversity. That in turn means that the faculty should not themselves seek to set aside professional misconduct as part of an overarching assessment of the quality of a tenure or retention file. The faculty will need to provide specific guidance to the trustees that includes more than an all-things-considered judgment but that attests to the fact that a professor has satisfied the standards of the statute, properly understood.

Trustees will need to establish an expected standard of review when conducting such a certification. The question of whether a faculty member has satisfied the requirements of SB202 will not be a matter of first impression for the trustees. It will have already been considered and judged by decisionmakers ranging from departmental faculty committees to university presidents before the file arrives on the desk of the trustees. The effective question for the trustees will be whether to accept the recommendation of those earlier decisionmakers that that the professor in question has or has not satisfied the requirements.

An appropriate standard of review by the trustees in such cases would be a deferential one. Significantly, whether this is true is contingent on how the statutory criteria are themselves interpreted. If the statutory criteria are understood to reinforce existing expectations of professional conduct by university scholars and instructors, then the detailed interpretation and application of those professional standards are best done by the faculty themselves. Just as the faculty are best positioned to determine the quality of an individual professor's scholarly output or classroom teaching, so the faculty are best positioned to determine whether an individual professor has engaged in professional misconduct. Trustees should be no more inclined to second-guess the faculty on this certification than they are the certification that a professor has published high-quality scholarly research. If a tenure file includes reports of student complaints that a professor has failed to offer sufficient intellectual diversity their classes and the faculty has taken such complaints seriously, investigated them, and found them in good faith to be

[139] Indiana Code, Title 21, Art. 39.5, Chap. 2, Sec. 2(b) (2024).
[140] Indiana Code, Title 21, Art. 39.5, Chap. 2, Sec. 4(a)(3) (2024).
[141] Indiana Code, Title 21, Art. 39.5, Chap. 2, Sec. 2(b) (2024).

groundless, then trustees should be reluctant to substitute their own judgment of just what ideas ought to be represented in particular course syllabi.

That deference is, of course, defeasible. If departmental colleagues or university presidents are inclined to wave away or overlook or minimize egregious misconduct by individual members of the faculty, the trustees have an independent statutory and fiduciary obligation to take corrective action. If the university faculty are unwilling to police their own when it comes to professional misconduct, trustees will have to be prepared to step in and not simply rubberstamp a certification that individual professors have met the statutory criteria for retaining their positions.

Adopting a deferential standard of review depends not only on the faculty acting in good faith in performing their own function in evaluating candidates for promotion and retention, it also depends on construing SB202 as primarily reinforcing existing norms and standards of proper scholarly conduct. Upon such a reading of the statutory criteria, the faculty as a body will have useful expertise to provide to help guide trustees on whether and when individual members of the faculty have conducted themselves properly. If, however, the statute is understood to primarily be about reforming or overriding scholarly norms, then the judgment of the faculty will be much less helpful and the trustees will have to exercise more independent judgment when reviewing promotion and retention files. If the statute is understood to require, for example, that state universities exclude from the faculty a modern-day Herbert Marcuse or anyone who would dismiss out of hand the study of critical race theory or who thought it appropriate to teaching courses on liberalism without also incorporating into those courses a discussion of the radical and reactionary critics of liberalism, then the trustees would be called upon to override existing norms of academic freedom and be more interventionist in their review of promotion and retention cases. Such a reading of the statute and the responsibility of the trustees would have dramatic consequences for state universities covered by the mandate, and thus it is all the more important for the trustees to deliberate self-consciously and early about how they will understand and approach their new responsibilities.

The vagueness of key provisions of SB202 mean that decisions about interpretation and implementation will be crucial to its effects on campus life. The uncertainty about what the statute might be understood to mean and how it might be applied will create its own chilling effects on campus discourse. The open-ended quality of many of the statute's terms create real risks of abuse and intrusion into traditional domains of academic freedom. The process for receiving and reviewing complaints opens the door to idiosyncratic, burdensome, and politicized witch hunts. Ultimately, the trustees are charged with construing the requirements of SB202 and ensuring its implementation. They can take steps to reduce uncertainty and the possibility of abuse and to reconcile the new mandate with the broader educational and scholarly mission of the university.

VII. CONCLUSION

SB202 represents a novel intervention into campus reform debates, and it could easily become a model for future policy initiatives outside of Indiana and even in private universities. Given the novel and open-ended quality of the law, there is an unusual level of uncertainty about how it might actually be interpreted and implemented. There are paths

that boards of trustees can take that would mitigate the negative effect of the law while improving university operations, but there are also paths that they might take that would be highly intrusive into the intellectual life of the university and would likely be highly detrimental to the quality of the state's institutions of higher education.

The new directive that professors should be terminated if they fail to nourish a culture of free inquiry on campus sounds innocuous but could have counter-intuitive and damaging consequences if applied too broadly. At minimum, the requirement would seem to reinforce widely held but often inadequately enforced norms of professional conduct by university professors. Campus officials and trustees would seem to have a new and specific statutory obligation to remove from the faculty individuals who seek to obstruct the rightful actions of other members of the campus community or who abuse their classroom privileges by seeking to indoctrinate or bully their students. With adequate procedural protections for professors accused of misconduct and faculty input in assessing allegations of professorial misconduct, the statute would probably be rarely used to punish faculty but could serve as a net benefit to campus. The terms of the statute are broad enough, however, that they could also be used to intrude into the ordinary workings of the intellectual life of campus. The promotion of "free inquiry" could ironically become a tool for suppressing the free inquiry of the politically disfavored on campus.

The intellectual diversity mandate could likewise easily become a convenient instrument for removing troublesome members of the faculty. Unfortunately, the positive uses of this new mandate are less apparent and the abuses and unintended consequences much easier to foresee. The call for "variety," unlike the call for "free inquiry," does not build on or appeal to preexisting scholarly norms and professional standards, and it runs the risk of trampling those norms and standards, of substituting politically desired quotas for scholarly judgment. There will be inevitable temptations to use the intellectual diversity mandate as a cudgel to force professors to incorporate into their classes material that happen to be favored by campus activists or trustees. Professors will imagine that their careers will proceed more smoothly if they accommodate squeaky wheels even when they think such accommodations are not educationally warranted, and they might well be correct to think so. Trustees can provide some assurances to faculty that the mandate will not be used in such a way, but the path of least resistance for many professors might simply be to give aggrieved students whatever they ask for no matter how little intellectual justification there might be for doing so. Facilitating a process by which student activists or politically appointed trustees can shape individual course syllabi is not a recipe for better quality education, but the intellectual diversity mandate certainly creates that risk.

Even as it introduces greater uncertainty and risks into the intellectual life of state universities, SB202 is unlikely to have the effect that conservative activists and legislators might hope. The legislation avoids the heavy-handed censorship of classroom discussion that directly targets politically disfavored ideas, and likewise avoids some of the constitutional challenges that such policies create. SB202 seems unlikely to suppress the discussion of left-wing ideas that have drawn the ire of conservative activists. There is little in SB202 that should discourage members of the faculty from promoting critical race theory in their classrooms, for example. For conservatives, this is itself a concession to the academics of whom they otherwise disapprove. It might be a presumption that if a university populated primarily by professors who hail from the left of the political

spectrum is told that it must incorporate more "variety" into its syllabi, then the result will be better representation of conservative views in university classrooms. There is little intrinsic reason to imagine that this result will follow. Simple variety can be achieved in many ways, and there are many variations of left-wing thought that can be added to existing syllabi. Even if some conservative ideas are added to syllabi, there is little reason to imagine that actual classroom discussion will take those ideas any more seriously or integrate them in meaningful ways into the curriculum. An intellectual diversity mandate is a particularly crude tool for trying to encourage professors to take conservative ideas seriously or make universities more welcoming to conservative students. The result of the mandate could easily be the inclusion of more Ibram Kendi and Karl Marx into more courses rather than any uptick in assignments of Milton Friedman or Thomas Sowell. The complaint procedures established by the statute can be as easily weaponized by campus activists working to "decolonize the curriculum" as by those seeking a return to tradition. Lawmakers might imagine that the effect of SB202 will be to create an effective conservative content quota for courses, but that is not what the statute they wrote actually requires.

If lawmakers are worried that universities have becoming unwelcoming places for conservative students and that students are not receiving a sufficiently well-rounded education that introduces them an appropriate range of ideas, including ideas from the right, then there are likely more effective policy tools available than the kind of mandates incorporated into SB202.

It is true that university faculty lean heavily to the left in their personal politics.[142] This likely has significant downstream consequences for education and scholarship. Left-leaning faculty are less likely to find conservative ideas interesting or compelling, and thus unlikely to incorporate them into the curriculum. When there are few conservatives in academia then conservative ideas are unlikely to make their way into scholarly discourse except potentially as objects of criticism. With less conservative scholarship being produced, it would be no surprise if conservative ideas and concerns made less of an appearance in college syllabi.

If lawmakers want conservative ideas to make greater inroads into academia, staffing and research activity will be more consequential than any effect from such an intellectual diversity mandate in teaching. If the professors teaching university courses are themselves sympathetic to, interested in, or engaged with conservative ideas, they will be more likely to incorporate them organically into their teaching. If academic departments include conservative professors, professors in those departments are more likely to recognize that their course content is intellectual truncated if they ignore conservative ideas and scholarship – and to the extent that individual courses and professors systematically exclude legitimate conservative perspectives then other professors will have an opportunity to fill the gap through their own teaching. If lawmakers are convinced that it is a problem for the health of academia and for society if conservative sociologists have practically become an extinct species in contemporary universities, for example, then an intellectual diversity mandate affecting sociology courses is unlikely to make much

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[142] See Keith E. Whittington, *The Value of Ideological Diversity Among University Faculty*, 37 SOC. PHIL. & POL. 90 (2021).

difference in the long-run.[143] The goal should to be to resuscitate an intellectual world in which conservative sociologists like Robert Nisbet, Seymour Martin Lipset, Peter Berger, Nathan Glazer, Daniel Bell, and Edward Shils can have viable academic careers and contribute to the scholarship of the discipline as those individuals did in the mid- to late-twentieth century. Creating and funding research and teaching centers that pursue questions and themes of interest to conservatives and that are open to investigating conservative policies and concerns would make a more substantial impact while still being consistent with scholarly norms and standards. If academic sociologists regard merely being a Democrat as a favorable characteristic for a job candidate – and merely being a Republican as an unfavorable characteristic for an academic job in sociology – then circumventing existing departments and creating new entities might be necessary to diversifying the field of study.[144]

SB202 might identify a real concern about American higher education, but the solution it offers is not only ineffective but problematic. SB202 creates a vague set of tenure criteria that can easily be misused to target politically controversial professors. The result is unlikely to improve the quality of classroom teaching or genuinely foster a climate of free inquiry on university campuses, but it might lead professors to cater to the loudest cavilers in an effort to insulate themselves from capricious reprisals.

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[143] Recent studies find that there are a vanishingly small number of conservatives in the discipline of sociology. See, e.g., Neil Gross and Solon Simmons, *The Social and Political Views of American Professors* 34 (2007) (https://citeseerx.ist.psu.edu/document?repid=rep1&type=pdf&doi=bb515236a3a001d4f90f606088888651f2536414); BRUCE SMITH, JEREMY D. MAYER, AND A. LEE FRITSCHLER, CLOSED MINDS? 77-78 (2008); Stanley Rothman, Robert Lichter,and Neil Nevitte, *Politics and Professional Advancement among College Faculty* 3 THE FORUM 6 (2005) (http://www.bepress.com/forum/vol3/iss1/art2).

[144] On political bias among academic sociologists, see GEORGE YANCEY, COMPROMISING SCHOLARSHIP 56-60 (2011) ("Republicans are not desired by sociologists, as 28.7 percent of the sociologists weighed negatively the fact that a prospective candidate was Republican. . . . For example, 27.8 percent of the sociologists weighed favorably the fact that a prospective candidate was a member of the Democratic Party . . . and 20.2 percent of the sociologists weighed favorably the fact that a prospective candidate was a member of the Green Party.").